

Proposal Instructions

**Department of Technology, Management and Budget—Procurement
 Cloud Services**

Request for Proposal No. 250000000414

Solicitation Manager Name: Shannon Romein

Direct Phone: 517-898-8102

Email: RomeinS@michigan.gov

Main Phone: 1-855-MI-PURCH 1-855-647-8724

This is a Request for Proposal (RFP) for:

**Cloud Services
 Solicitation Timeline**

Event	Time	Date
Solicitation issue date	N/A	Friday, December 6, 2024
Pre-proposal meeting	9:30 a.m.	Thursday, December 12, 2024
Deadline for bidders to submit questions about this Solicitation	3:00 p.m. Eastern	Friday, December 20, 2024
Anticipated date the State will post answers to bidder questions on www.michigan.gov/SIGMAVSS	5:00 p.m. Eastern	Tuesday, January 7, 2025
<u>Deadline for bidders to submit questions for an additional second round of questions</u>	<u>3:00 p.m. Eastern</u>	<u>Friday, January 10th, 2025</u>
<u>Anticipated date the State will post answers to second round of bidder questions on www.michigan.gov/SIGMAVSS</u>	<u>5:00 p.m. Eastern</u>	<u>Friday, January 17th, 2025</u>
Proposal deadline*	11:00 a.m. Eastern	<u>Friday, February 7, 2025</u>
Anticipated contract begin date	N/A	Monday, June 2, 2025

*A bidder's proposal received at 11:00:01 a.m. Eastern is late and subject to disqualification.

This Solicitation is subject to change. Check www.michigan.gov/SIGMAVSS for current information.

RESPONSE REQUIREMENT: Download this RFP/RFS Word document, insert responses directly into the locations provided, referencing any external attachments, save under a new name and upload with any attachments. **DO NOT BREAK UP SOLICITATION.** Please upload completed Pricing Schedule separately.

1. PROPOSAL PREPARATION. The State recommends reading all Solicitation materials prior to preparing a proposal, particularly these Proposal Instructions and the Vendor Questions Worksheet. Bidders must follow these Proposal Instructions and provide a complete response to the items indicated in the table below. References and links to websites or external sources may not be used in lieu of providing the information requested in the Solicitation within the proposal. Include the bidder's company name in the header of all documents submitted with your proposal. **Note that all documents and information submitted as part of a proposal will become public record immediately upon receipt by the State. Proposals received by the State may be posted on the State's publicly available website after bidders are notified of the award recommendation.**

Solicitation Structure and Documentation

Document	Description	Bidder Response Instructions
Cover Page	Provides Solicitation title and number, important dates, and contact information for Solicitation Manager	Informational
Proposal Instructions	Provides Solicitation instructions to bidders	Informational
Confidential Treatment Form	Required verification on whether bidder's proposal contains confidential information	Bidder must complete and submit by proposal deadline
Vendor Questions Worksheet	Questions to bidders on background and experience	Bidder must complete and submit by proposal deadline
Attachment 1, Resume Templates	Key Personnel Resume Templates	Bidder must complete and submit by proposal deadline
Initial Response: High-level Terms and Conditions concepts	High-level Terms and Conditions concepts	Bidder must complete and submit by proposal deadline
Software Terms and Conditions	This document provides the standard IT Contract Terms which is provided for reference only	Bidder to provide proposed terms applicable to this purchase
Schedule A – Statement of Work	Statement of Work details	Bidder must complete and submit by proposal deadline

Document	Description	Bidder Response Instructions
Schedule A - Attachment 1 -Business Specification Worksheet	Business requirements	Bidder must complete and submit by proposal deadline
Schedule B – Pricing	Pricing for goods and services sought by the State through this Solicitation	Bidder must complete and submit by proposal deadline
Schedule C – Insurance	This document provides the Contract Insurance Requirements for any contract awarded from this solicitation.	Deemed accepted by Bidder unless information required in the Evaluation Process section of this document is submitted by the proposal deadline.
Schedule D - Service Level Agreement	This document provides the Service Level Agreement for any contract awarded from this solicitation.	Deemed accepted by Bidder unless written exceptions in accordance with the Evaluation Section are provided to State with Bidder's proposal.
Schedule E – Data Security Requirements	This document provides the Data Security Requirements for any contract awarded from this solicitation.	Deemed accepted by Bidder unless written exceptions in accordance with the Evaluation Section are provided to State with Bidder's proposal.
Schedule F - Disaster Recovery Plan	This schedule is a placeholder for the Bidder to provide their as Disaster Recovery Plan as Schedule G - Disaster Recovery Plan.	To be provided by Bidders and subject to negotiation.
Schedule G – Transition In and Out Plan	This document provides the Transition in and Out Plan from the Contractor for any contract awarded from this.	To be provided by Bidders and subject to negotiation.
Schedule J - Federal Provision Addendum	The document provides federally required provisions when federal funds are used for the procurement.	Informational
Schedule J, Attachment 1 Byrd Anti-Lobbying Certification	Limitation on Payments to Influence Certain Federal Transactions	To be completed by Bidders

2. CONTACT INFORMATION FOR THE STATE. The sole point of contact for the State concerning this Solicitation is listed on the Cover Page. Contacting any other State personnel, agent, consultant, or representative about this Solicitation may result in Bidder disqualification.

3. OPTIONAL PRE-PROPOSAL MEETING.

An optional pre-proposal meeting will be held on December 12 at 9:30am Eastern Time via Teams.

Microsoft Teams [Need help?](#)

[Join the meeting now](#)

Meeting ID: 286 811 784 653

Passcode: 3thMpZ

Dial in by phone

[+1 248-509-0316 262997580#](#) United States, Troy

[Find a local number](#)

Phone conference ID: 262 997 580#

For organizers: [Meeting options](#) [Reset dial-in PIN](#)

The purpose of the pre-proposal meeting is to discuss the RFP/RFS and the work to be performed, and may include an inspection of the facility to receive the goods or services sought in this RFP/RFS. Statements made by the Solicitation Manager or designee at a pre-proposal meeting are not considered modifications to the Solicitation. If, however, the Solicitation Manager determines modifications to the Solicitation are warranted after the meeting, modifications will be posted in writing on www.michigan.gov/SIGMAVSS as explained in the **Modifications** section of this document.

Attendance at the pre-proposal meeting is limited to 5 people per bidder. If the pre-proposal meeting is mandatory, a bidder may be disqualified by being late. Subcontractor sign-in is permitted in lieu of the bidder as evidence of attendance. Accessibility requests for reasonable accommodations at the pre-proposal meeting should be made with the Solicitation Manager at least 10 business days before the date of the meeting. Accommodation requests received outside this time period cannot be guaranteed.

4. MODIFICATIONS. The State may modify the Solicitation any time. Modifications will be posted on www.michigan.gov/SIGMAVSS. This is the only method by which the Solicitation may be modified.

5. QUESTIONS. Bidder questions about this Solicitation must be emailed to the Solicitation Manager no later than the time and date specified on the Cover Page. In the interest of transparency, only written questions are accepted. Answers to questions will be posted on www.michigan.gov/SIGMAVSS. Submit questions using the format below; a Microsoft Excel format or similar is suggested.

Q #	Document and Section	Page #	Bidder Question

6. DELIVERY OF PROPOSAL.

Electronic – The bidder must submit its proposal, all attachments, and any modifications or withdrawals electronically through www.michigan.gov/SIGMAVSS. The price proposal should be saved separately from all other proposal documents. The bidder should submit all documents in a modifiable (native) format (examples include but are not limited to Microsoft Word or Excel and Google Docs or Sheets). In addition to submitting documents in a modifiable format, the bidder may also submit copies of documents in PDF. Attachment file size is limited to 6 MB per document. Bidder's failure to submit a proposal as

required may result in disqualification. The proposal and attachments must be fully uploaded and submitted prior to the proposal deadline. Do not wait until the last minute to submit a proposal, as the SIGMA VSS system requires the creation of an account and entry of certain information, in addition to uploading and submitting the materials. The SIGMA VSS system will not allow a proposal to be submitted after the proposal deadline identified in the solicitation Closing On/Closing Date fields (Summary view/Detail view), even if a portion of the proposal has been uploaded. Questions on how to submit information or how to navigate in the SIGMA VSS system can be answered by calling (517) 284-0540 or (888) 734-9749. The Solicitation Manager will not provide assistance related to the submittal of the proposal and all attachments on the day of the proposal deadline. Responsibility for a complete submission lies with the bidder. Note that all documents and information submitted in any manner as part of a proposal will become public record immediately upon receipt by the State. Proposals received may be posted by the State on the State's publicly available website after bidders are notified of the award recommendation.

7. MANDATORY MINIMUM REQUIREMENTS. To avoid disqualification, the Bidder must provide documentation to support the following:

Minimum Requirements	
1.	Bidders must be a Direct Cloud Service Provider listed as 'FedRAMP Authorized' in the General Services Administration (GSA) FedRAMP Marketplace at Impact Level 'Low', 'Moderate', or 'High' and a Service Model that includes 'IaaS' and 'PaaS'
	BIDDER RESPONSE: Oracle is a direct Cloud Service Provider. On the General Services Administration (GSA) FedRAMP Marketplace website Oracle is FedRAMP Authorized with a Service Model that includes IaaS and PaaS. Please see the file, <i>FedRAMP Marketplace-Oracle.pdf</i>, as reference documentation included with our response. Over 100 FedRAMP High-JAB (Joint Authorization Board) services are available in Oracle's US Government Cloud regions. New services are added regularly after FedRAMP authorization. The publicly available catalog indicates the services that are in the FedRAMP authorization process.

Only those proposals that meet the mandatory minimum requirements will be considered for evaluation.

8. EVALUATION PROCESS. The State will evaluate each proposal based on the following factors:

	Technical Criteria Name	Weight
1.	Vendor Questions Worksheet	5
2.	Schedule A- Statement of Work	20
3.	Schedule A- Table 1- Business Specification Worksheet	75
	Total	100

Proposals receiving 80 or more evaluation points will have pricing evaluated and be considered for award.

The State may utilize all Bidder information, without regard to a proposal's technical score, to determine fair market value for goods or services sought. The State is not obligated to accept the lowest price proposal. If applicable, the State's evaluation will include consideration of a bidder's qualified disabled veterans/service-disabled veteran owned business(QDV/SDVOB) status under [MCL 18.1261\(8\)](#). Additional information on the SDVOB preference is available at: [Michigan.gov/SDVOB](#).

The State strongly encourages strict adherence to the Contract Terms and Schedules. The State reserves the right to deem a bid non-responsive for failure to accept the Contract Terms and Schedules. Nevertheless, the Bidder must submit any and all proposed changes to the Contract Terms and

Schedules in tracked changes (i.e., visible edits) with an explanation of the Bidder's need for each proposed change. Failure to include track changes with an explanation of the Bidder's need for the proposed change constitutes the Bidder's acceptance of the Contract Terms and Schedules. State may choose not to accept redlines proposed by Bidders after the initial bid submission and Bidders who fail to submit redlines with their initial submission may be disqualified. Volume and type of changes may impact evaluation scores. General statements, such as that the Bidder reserves the right to negotiate the terms and conditions or extensive redlines, may be considered non-responsive. Failure to respond timely to requests for proposed changes to Contract Terms during ongoing negotiations may be cause for disqualification.

☒ Bidder understands that proposed changes may affect the evaluation score and may be considered non-responsive.

The State may, but is not required to, conduct an on-site visit to tour and inspect the Bidder's facilities, require an oral presentation of the Bidder's proposal, attend a proof of concept meeting, conduct interviews with Bidders, or request additional price concessions at any point during the evaluation process.

The State may deduct points or reject a proposal if the Bidder fails to demonstrate to the State's satisfaction the viability or functionality of the goods or services at the proof of concept meeting, on-site visit tour, oral presentations, or during Bidder interviews.

9. NOTICE OF DEFICIENCY. The State reserves the right to issue a **Notice of Deficiency** to Bidders if the State determines after the proposal deadline that a portion of the Solicitation was deficient, unclear, or ambiguous. Failure to respond to a **Notice of Deficiency** timely may be cause for disqualification.

10. CLARIFICATION REQUEST. The State reserves the right to issue a **Clarification Request** to a Bidder to clarify its proposal if the State determines the proposal is not clear. Failure to respond to a **Clarification Request** timely may be cause for disqualification.

11. RESERVATIONS. The State reserves the rights, including, but not limited to:

- a. Disqualify a Bidder for failure to follow these instructions.
- b. Discontinue the solicitation process at any time for any or no reason. The issuance of a solicitation, your preparation and submission of a proposal, and the State's subsequent receipt and evaluation of your proposal does not commit the State to award a contract to you or anyone, even if all the requirements in the solicitation are met.
- c. Consider late proposals if: (i) no other proposals are received; (ii) no complete proposals are received; (iii) the State received complete proposals, but the proposals did not meet mandatory minimum requirements or technical criteria; or (iv) the award process fails to result in an award.
- d. Consider an otherwise disqualified proposal, if no other proposals are received.
- e. Disqualify a proposal based on: (i) information provided by the Bidder in response to this solicitation; (2) the Bidder's failure to complete registration on www.michigan.gov/SIGMAVSS; or (3) if it is determined that a Bidder purposely or willfully submitted false or misleading information in response to the solicitation.
- f. Consider prior performance with the State in making its award decision.

- g. Consider overall economic impact to the State when evaluating proposal pricing and in the final award recommendation. This includes but is not limited to: considering principal place of performance, number of Michigan citizens employed or potentially employed, dollars paid to Michigan residents, Michigan capital investments, job creation, tax revenue implications, and economically disadvantaged businesses.
- h. Consider total-cost-of-ownership factors (e.g., transition and training costs) when evaluating proposal pricing and in the final award recommendation.
- i. Refuse to award a contract to any Bidder that has failed to pay State taxes or has outstanding debt with the State.
- j. Enter into negotiations with one or more Bidders on price, terms, technical requirements, or other deliverables.
- k. Award multiple, optional-use contracts, or award by Contract Activity.
- l. Evaluate the proposal outside the scope identified in the **Evaluation Process** section of this document, if the State receives only one proposal.

12. AWARD RECOMMENDATION. The contract will be awarded to the responsive and responsible Bidder who offers the best value to the State, as determined by the State. Best value will be determined by the Bidder meeting the minimum point threshold and offering the best combination of the factors stated in the **Evaluation Process** section of this document, and price, as demonstrated by the proposal. The State will post an **Award Recommendation and Evaluation Synopsis** on www.michigan.gov/SIGMAVSS or in the manner it was originally published.

13. DEBRIEF MEETINGS AND PROTEST. The State will post an **Award Recommendation and Evaluation Synopsis**, which will provide instructions on how to request a debrief meeting.

If you wish to initiate a protest of the award, you must submit your written protest electronically at BidProtest-DTMB@michigan.gov no later than 5:00 p.m. Eastern, 5 business days after posting the **Award Recommendation and Evaluation Synopsis** on SIGMA VSS. The State reserves the right to adjust this timing and will publish any change on the SIGMA VSS system.

Additional information about the protest process is available at [DTMB - Programs and Policies \(michigan.gov\)](http://DTMB-Programs and Policies (michigan.gov)) under the "Bidder Protests" link.

14. STATE ADMINISTRATIVE BOARD. Contracts equal to \$250,000 or greater require approval by the State Administrative Board. The State Administrative Board's decision is final; however, its approval does not constitute a contract. The award process is not complete until the awarded contractor receives a contract fully executed by all parties.

15. GENERAL CONDITIONS. The State will not be liable for any costs, expenses, or damages incurred by a Bidder participating in this solicitation. The Bidder agrees that its proposal will be considered an offer to do business with the State in accordance with its proposal, including the Contract Terms, and that its proposal will be irrevocable and binding for a period of 180 calendar days from date of submission. If a contract is awarded to the Bidder, the State may, at its option, incorporate any part of the Bidder's proposal into a contract. This solicitation is not an offer to enter into a contract. This solicitation may not provide a complete statement of the State's environment or contain all matters upon which agreement must be reached. The bidder understands that their proposal will become public record immediately upon receipt by the State.

Other than verified trade secrets, proposals submitted via www.michigan.gov/SIGMAVSS are the State's property.

16. CONFIDENTIAL TREATMENT FORM AND THE FREEDOM OF INFORMATION ACT. As a public record, all portions of the bidder's proposal and resulting contract are subject to disclosure as required under Michigan's Freedom of Information Act (FOIA), MCL 15.231, et seq. However, the State may exempt some information from disclosure as permitted by law. Under MCL 18.1261(13)(b), records containing "a trade secret as defined under section 2 of the uniform trade secrets act, 1998 PA 448, MCL 445.1902," are exempt from disclosure under FOIA. In addition, "financial or proprietary information" submitted with a bidder's proposal is exempt from disclosure under FOIA. **A bidder's failure to comply with this Section is grounds for rejecting a bidder's proposal as non-responsive.** As a part of its proposal, each bidder must follow the procedure below.

a. SUBMIT A COMPLETED "CONFIDENTIAL TREATMENT FORM" (CT FORM) WITH YOUR BID.

Completion and submission of the CT Form is required regardless of whether the bidder seeks confidential treatment of information. **Failure to submit a completed CT Form may be cause for disqualification from the solicitation process. If a bidder fails to properly complete and submit the CT Form or otherwise fails to follow CT Form instructions, the proposal may be publicly disclosed in its entirety without redaction after an award recommendation.**

- i. Complete and sign Section 1 of the CT Form if the bidder does NOT request confidential treatment of information contained in its proposal; or
- ii. Complete and sign Section 2 of the CT Form if the bidder requests confidential treatment of certain information. Bidder must also submit a "Public Copy" of the proposal with the trade secret, financial, and proprietary information redacted and clearly labeled as the "Public Copy."
- iii. Failure to complete and sign a CT Form may result in disqualification of the bidder. If a bidder fails to properly complete and submit the CT Form or otherwise fails to follow the CT Form instructions, the proposal, in its entirety, will be treated as a "Public Copy" and may be publicly disclosed by the State without redaction after bidders have been notified of an award recommendation.

b. FOIA REQUESTS. If a FOIA request is made for a bidder's proposal, the Public Copy may be distributed to the public along with the bidder's CT Form. The CT Form is a public document and serves as an explanation for the redactions to the Public Copy. Do not put any trade secret, financial, or proprietary information in the CT Form. Do not redact the CT Form itself.

c. NO ADVICE. The State will not advise a bidder as to the nature or content of documents entitled to protection from disclosure under FOIA or other laws, as to the interpretation of such laws, or as to the definition of trade secret or financial or proprietary information. Nothing contained in this provision will modify or amend requirements and obligations imposed on the State by FOIA or other applicable law.

d. FAILURE TO REQUEST CONFIDENTIAL TREATMENT. Failure to request material be treated as confidential as specified herein relieves the State, its agencies, and personnel from any responsibility for maintaining material in confidence.

e. Bids containing a request to maintain an entire proposal as confidential may be rejected as non-responsive. Bidders may not request confidential treatment with respect to resumes, pricing, and marketing materials. The State reserves the right to determine whether material

designated as exempt by a bidder falls under MCL 18.1261 or other applicable FOIA exemptions. If a FOIA request is made for materials that the bidder has identified as trade secret, financial, or proprietary information, the State has the final authority to determine whether the materials are exempt from disclosure under FOIA.

f. Bidder forever releases the State, its departments, subdivisions, officers, and employees from all claims, rights, actions, demands, damages, liabilities, expenses and fees, which arise out of or relate to the disclosure of all or a portion of bidder's proposal submitted under this Solicitation. Bidder must defend, indemnify and hold the State, its departments, subdivisions, officers, and employees harmless, without limitation, from and against all actions, claims, losses, liabilities, damages, costs, attorney fees, and expenses (including those required to establish the right to indemnification), arising out of or relating to any FOIA request, including potential litigation and appeals, related to the portion of bidder's proposal submitted under this Solicitation that bidder has identified as a trade secret, or financial or proprietary information. The State will notify bidder in writing if indemnification is sought. The State is entitled to: (i) regular updates on proceeding status; (ii) participate in the defense of the proceeding; (iii) employ its own counsel; and to (iv) retain control of the defense, or any portion thereof, if the State deems necessary. Bidder will not, without the State's written consent (not to be unreasonably withheld), settle, compromise, or consent to the entry of any judgment in or otherwise seek to terminate any claim, action, or proceeding. If a State employee, official, or law is involved or challenged, the State may control the defense of that portion of the claim. Any litigation activity on behalf of the State, or any of its subdivisions under this Section, must be coordinated with the Department of Attorney General. An attorney designated to represent the State may not do so until approved by the Michigan Attorney General and appointed as a Special Assistant Attorney General.

Confidential Treatment Form

Please see the file, *Confidential Treatment Form-Oracle.pdf*, included with our response.

INSTRUCTIONS. Bidder must complete either *Section 1* or *Section 2* of this CT Form and sign where indicated. **Do not complete both sections.** This CT Form must be signed by the individual who signed the bidder's proposal. A completed CT Form must be submitted with your proposal, regardless of whether your proposal contains confidential information.

Failure to submit a completed CT Form with your bid is grounds for rejecting the proposal as non-responsive. If a bidder fails to properly complete and submit the CT Form or otherwise fails to follow CT Form Instructions, the proposal, in its entirety, will be treated as a "Public Copy" and may be publicly disclosed by the State without redaction after bidders have been notified of an award recommendation. See the Confidential Treatment Form and The Freedom of Information Act (FOIA) sections of the *Proposal Instructions* for additional information.

Section 1. CONFIDENTIAL TREATMENT IS NOT REQUESTED

This section must be completed, signed, and submitted with the proposal if the bidder does **not** request confidential treatment of any material contained in the proposal. **If this section is completed, do not complete Section 2: CONFIDENTIAL TREATMENT IS REQUESTED.**

By signing below, the bidder affirms that confidential treatment of material contained in their proposal is not requested.

Solicitation Number

Solicitation Title

Signature

Date

Printed Name, Title, Company

Section 2. CONFIDENTIAL TREATMENT IS REQUESTED

This section must be completed, signed, and submitted with the proposal if bidder requests confidential treatment of any material contained in the proposal. Submission of a completed CT Form is required to request confidential treatment. **If this section is completed, do not complete Section 1: CONFIDENTIAL TREATMENT IS NOT REQUESTED.**

Provide the information in the table below. Bidder may add rows or additional pages using the same format shown in the table. Bidder must specifically identify the information to be protected as confidential and state the reasons why protection is necessary.

The CT Form will not be considered fully complete unless, for each confidentiality request, the bidder: (1) identifies the Proposal Page #, Section #, and Paragraph #, (2) identifies whether the material is a Trade Secret (TS), Proprietary Financial Information (FI), or Proprietary Information (PI), and (3) explains the specific legal grounds that support treatment of the material as TS, FI, or PI. Bidders must provide a complete justification as to how the material falls within the scope of an applicable FOIA exemption or relevant case law. Bidders must not simply cite to an applicable exemption or case name. Bidders must also provide the contact information for the person at their organization authorized to respond to inquiries by the State concerning the material.

Bidder must also submit a "Public Copy" of the proposal with the trade secret, financial, and proprietary information redacted and clearly labeled as the "Public Copy".

(1) Proposal Page #, Section #, Paragraph #	(2) Material is Trade Secret (TS), Proprietary Financial Information (FI), Proprietary Information (PI)	(3) Applicable FOIA Exemption with Written Justification	(4) Bidder Contact Information

By signing below, the bidder affirms that confidential treatment of material contained in their proposal is requested and has attached to this form a redacted "Public Copy" of the bidder's proposal.

 Solicitation Number

 Solicitation Title

 Signature

 Date

 Printed Name, Title, Company

Vendor Questions Worksheet

Provide a detailed response to each question. "You" and "company" refers to the bidder.

Information Sought	Bidder Response
1. Contact Information	
Bidder's sole contact person during the Solicitation process. Include name, title, address, email, and phone number.	Olivia Vialonga Oracle Public Sector Account Representative 2300 Oracle Way Austin, TX 78741 Email: olivia.vialonga@oracle.com Telephone: 201.421.5112
Person authorized to receive and sign a resulting contract. Include name, title, address, email, phone number and vendor customer code in SIGMA VSS.	Michael Estrada Director, Customer Deal Desk 1900 Oracle Way Reston, VA 20190 Email: st-local-agreements_us@oracle.com
2. Company Background Information	
Legal business name and address. Include business entity designation, e.g., sole proprietor, Inc., LLC, or LLP.	Oracle America, Inc. 500 Oracle Way Redwood Shores, CA 94065
What state was the company formed in?	Oracle Corporation was incorporated in 2005 as a Delaware corporation and is the successor to operations originally begun in June 1977.
Phone number.	737.867.1000
Website address.	https://www.oracle.com
Number of years in business.	Oracle has been in business for 47 years.
Number of employees.	As of May 31, 2024, Oracle employed approximately 159,000 full-time employees.
Legal business name and address of parent company, if any.	Oracle Corporation 2300 Oracle Way Austin, TX 78741

Information Sought	Bidder Response
Has there been a recent change in organizational structure (e.g., management team) or control (e.g., merger or acquisition) of your company? If the answer is yes: (a) explain why the change occurred and (b) how this change has affected your company.	No.
Discuss your company's history. Has growth been organic, through mergers and acquisitions, or both?	Oracle has been in business since 1977. Oracle is a worldwide organization with offices and resources on nearly every continent. Growth has been organic as well as through mergers and acquisitions. Oracle Innovation and Leadership For more than four decades, Oracle has delivered innovations that have helped build entire industries. The following facts and figures highlight some of the many ways we continue to deliver that innovation for our customers, partners, and communities. Scale • US\$53 billion in revenue in FY24 • \$81 billion in research and development (R&D) since FY2012 • \$110+ billion spent on more than 150 acquisitions • 20,000 partners across the globe • 159,000 employees • 18,000 customer support and service specialists, speaking 29 languages • 30,000 implementation consultants • Supports thousands of educational institutions and millions of students in more than 130 countries Innovation • World's first and only autonomous database • Industry's broadest and deepest suite of AI-powered cloud applications • Hold nearly 19,000 patents worldwide • 47,000 developers and engineers • 5 million registered members of Oracle's customer and developer communities

Information Sought	Bidder Response
	469 independent user communities in 97 countries representing more than 1 million members Strategic Mergers and Acquisitions Through our acquisition activities, Oracle seeks to strengthen its product offerings, accelerate innovation, meet customer demand more rapidly, and expand partner opportunities. An integral part of Oracle's Mergers and Acquisitions philosophy is our consistent commitment to customer service and product support while achieving our financial return objectives and creating value for our shareholders.
Has bidder ever been debarred, suspended, or disqualified from bidding or contracting with any entity, including the State of Michigan? If yes, provide the date, the entity, and details about the situation.	No. Oracle's response is limited to debarred, suspended, or proposed for debarment.
Has your company been a party to litigation against the State of Michigan? If the answer is yes, then state the date of initial filing, case name and court number, and jurisdiction.	This request is overly broad, vague, and unlimited in both time and scope. Oracle is subject to various legal proceedings and claims, either asserted or unasserted, which arise in the ordinary course of business. Oracle is a public company and, as such, reports all litigation and/or legal claims that may have a material, adverse effect on the operation of its business in its Form 10-K filings with the Securities and Exchange Commission.
Within the last 5 years, has your company or any of its related business entities defaulted on a contract or had a contract terminated for cause? If yes, provide the date, contracting entity, type of contract, and details about the termination or default.	No. Oracle's response is limited to public sector contracts with Oracle America, Inc. and the actions of its acquired companies after the dates of their acquisition.
State your gross annual sales for each of the last 5 years. If receiving a contract under this Solicitation will increase your gross revenue by more than 25% from last year's sales, explain how the company will scale-up to manage this increase.	Year Ended May 31 2024: \$52,961 US dollars in millions 2023: \$49,954 US dollars in millions 2022: \$42,440 US dollars in millions 2021: \$40,479 US dollars in millions 2020: \$39,068 US dollars in millions

Information Sought	Bidder Response
Describe partnerships and strategic relationships you think will bring significant value to the State.	Oracle currently holds a strategic partnership with State of Michigan as we provide a vast amount of Oracle database software supporting many of the state's mission-critical systems. Over the years Oracle has facilitated various forms of education for DTMB to ensure the state's IT staff is knowledgeable on both Oracle's latest and greatest as well as ways to maximize Michigan's current investments in Oracle technology. Some examples of education include last year's Oracle innovation Day's Leverage What You Own workshop and this fall's DevTech Day. Moreover, Oracle is a proud sponsor of various Michigan GovTech events including the state's annual Digital and Cyber summits. We look forward to continuously sponsor future events in support of the state. Not only do we hold a strategic relationship with DTMB, but we also have a strong presence as the local government level in Michigan. In recent years we have forged a strong partnership with Wayne County government as they've invested in Oracle Enterprise Resource Planning (ERP) and Human Capital Management (HCM) Software as a Service (SaaS) applications as well as various Platform (PaaS) and Infrastructure as a Service (IaaS) services. We have helped Wayne County propel on its app modernization journey through leveraging Oracle low-code/no-code PaaS services. They leverage several additional PaaS services such as integration, analytics, reporting, and more. Wayne County currently piggybacks off of Oracle's Master Agreement with State of Michigan (Contract Number 071B4300149) as a contract vehicle to procure Oracle Cloud services as they continuously evolve on their strategic roadmap and expand their use of Oracle Cloud offerings.
State the physical address of the place of business that would have primary responsibility for this account if bidder is awarded a contract under this Solicitation.	Oracle America, Inc. 2300 Oracle Way Austin, TX 78741
Bidder affirms that any business types identified on its SIGMA VSS profile, including those eligible for Geographically Disadvantaged Business Enterprise (GDBE) and Michigan Supplier Community Program (MISC), are valid.	Choose an item. Not applicable.

Information Sought	Bidder Response
3. Qualified Disabled Veteran/Service-Disabled Veteran-Owned Business Program	
Under MCL 18 1261 a “qualified disabled veteran” means a business entity that is 51% or more owned by 1 or more veterans with a service-connected disability. A “service-connected disability” means a disability incurred or aggravated in the line of duty in the active military, naval, or air service as described in 38 USC 101(16). Are you a qualified disabled veteran?	No.
To demonstrate qualification as a qualified disabled veteran, you must provide: (a) Proof of service and conditions of discharge (DD214 or equivalent); (b) Proof of service-connected disability (DD214 if the disability was documented at discharge or Veterans Administration Rating Decision Letter or equivalent if the disability was documented after discharge); and (c) Legal documents setting forth the ownership of the business entity. In lieu of the documentation identified above, you may provide proof of certification by the National Veterans Business Development Council.	Enter the names of documents submitted with your proposal to demonstrate status as a qualified disabled veteran. Not applicable.
4. Participation in Solicitation Development or Evaluation	
Did your company, an employee, agent, or representative of your company, or any affiliated entity participate in developing any component of this solicitation? For purposes of this question, business concerns, organizations, or individuals are affiliates of each other if, directly or indirectly: (1) either one controls or has power to control the other or (2) a third-party controls or has the power to control both. Indicia of control include, but are not limited to, interlocking management or ownership, identity of interests among family members, shared facilities or equipment, and common use of employees.	No. Oracle is an indirectly, wholly-owned subsidiary of Oracle Corporation, a large, publicly traded, multinational corporation with a very large number of employees. While Oracle is not aware of any participation in developing any component of this Solicitation, as a practical matter, Oracle does not have the ability to survey all of those employees. Oracle can confirm that the Oracle sales team responding to this RFP, to the best of their knowledge, as of the date of this submission, were not involved in developing any component of this Solicitation.

Information Sought	Bidder Response
If you are awarded a contract under this solicitation, in order to provide the goods or services required under a resulting contract, do you intend to partner or subcontract with a person or entity that assisted in the development of this solicitation?	No. If you enter "YES," you are not eligible for contract award. An awarded vendor may not partner or subcontract with anyone to provide goods and services required under a resulting contract if that subcontractor or partner assisted in the development of this solicitation.
Will your company, or an employee, agent, or representative of your company, participate in the evaluation of the proposals received in response to this Solicitation?	No. Oracle is an indirectly, wholly-owned subsidiary of Oracle Corporation, a large, publicly traded, multinational corporation with a very large number of employees. While Oracle does not expect to participate in the evaluation of the proposals received in response to this Solicitation, as a practical matter, Oracle does not have the ability to survey all of those employees. Oracle can confirm that the Oracle sales team responding to this RFP, to the best of their knowledge, at the time of this submission, does not expect to be involved in the evaluation of the proposals received in response to this Solicitation.
5. State of Michigan Experience and Prior Experience	
Does your company have experience working with the State of Michigan? If so, please provide a list (including the contract number) of the contracts you hold or have held with the State for the last 10 years.	Oracle has a longstanding history of working with State of Michigan. Oracle currently holds Contract Number 071B4300149 with the state, which encompasses hardware, software, and professional services offerings. State of Michigan has heavily invested in Oracle database as the backend technology supporting various mission-critical systems across the state, for example DHHS' CHAMPS and Bridges applications. The state's current Oracle database footprint consists of 4,223 Database Enterprise Edition licenses and various database license options. These software licenses provide security, performance, and manageability functionalities to augment and support DTMB's operations.
Describe at least 3 relevant experiences from the last 5 years supporting your ability to successfully manage a contract of similar size and scope for the work described in this Solicitation.	Oracle has experience in managing various contracts similar in size and scope for the work described in this solicitation. These experiences include Oracle's contracts with State of Michigan, Wayne County Government, and State of Oklahoma.
Experience 1	
Company name. Contact name. Contact role at time of project. Contact phone. Contact email.	State of Michigan Simon Baldwin IT Category Director, DTMB Central Procurement Telephone: 517.897.7681 Email: BaldwinS@michigan.gov

Information Sought	Bidder Response
City. State. Zip.	Lansing, Michigan 48909
1. Project name and description of the scope of the project. 2. What role did your company play? 3. How is this project experience relevant to the subject of this Solicitation?	1. Master Agreement between the State of Michigan and Oracle America Inc. 2. Technology Vendor/Partner 3. The size and scope of this contract is similar to that of the contract described in this solicitation.
Dollar value.	\$134,066,666.67
Start and end date (mm/yy – mm/yy)	August 2014 to August 2025
Status (completed, live, other – specify phase)	Live
Results obtained.	State of Michigan can leverage this agreement to procure hardware, software, and services offerings included in the contract to support the State's strategic technology and business objectives. Local government entities across Michigan also currently leverage this agreement to procure hardware, software, professional services, and Oracle Cloud services.
Experience 2	
	Begin Oracle Confidential Information
Company name. Contact name. Contact role at time of project. Contact phone. Contact email.	[REDACTED]
City. State. Zip.	[REDACTED]

Information Sought	Bidder Response
1. Project name and description of the scope of the project. 2. What role did your company play? 3. How is this project experience relevant to the subject of this Solicitation?	■ [REDACTED] ■ [REDACTED] ■ [REDACTED] [REDACTED]
Dollar value.	
Start and end date (mm/yy – mm/yy)	[REDACTED]
Status (completed, live, other – specify phase)	■
Results obtained.	[REDACTED] [REDACTED] [REDACTED] [REDACTED]
	End Oracle Confidential Information
Experience 3	
Company name. Contact name. Contact role at time of project. Contact phone. Contact email.	State of Oklahoma Ayana Wilkins Sr. Director of Enterprise Systems
City. State. Zip.	Oklahoma City, Oklahoma 73105
1. Project name and description of the scope of the project. 2. What role did your company play? 3. How is this project experience relevant to the subject of this Solicitation?	1. Master Agreement between State of Oklahoma and Oracle America Inc. 2. Technology Vendor/Partner 3. This project is relevant to the subject of this solicitation as this contract includes Oracle Cloud Services for a state entity.
Dollar value.	Contract vehicle
Start and end date (mm/yy – mm/yy)	March 2024 to March 2025

Information Sought	Bidder Response
Status (completed, live, other – specify phase)	Live
Results obtained.	State of Oklahoma leverages this contract to procure various Oracle Cloud Services to support its business and technology objectives and overall success.
6. Standard Contract Terms	
Bidder must affirm agreement with all items within the “Initial Response: High-level Terms and Conditions”. If not in agreement, written exceptions may only be provided in accordance with the Evaluation Process section of the Proposal Instructions must be provided with Bidder’s proposal. Having exceptions to the “Initial Response: High-level Terms and Conditions” may be cause for disqualification.	Please see Oracle’s response to the <i>Initial Response: High-level Terms and Conditions</i> .
Please indicate whether Bidder is listed on the government-wide exclusions in the System for Award Management (SAM), in accordance with the OMB guidelines at 2 CFR 180 that implement Executive Orders 12549 (51 FR 6370; February 21, 1986) and 12689 (54 FR 34131; August 18, 1989), “Debarment and Suspension.” SAM Exclusions contains the names of parties debarred, suspended, or otherwise excluded by agencies, as well as parties declared ineligible under statutory or regulatory authority other than Executive Order 12549.	Oracle’s annual Representations and Certifications (Reps and Certs) are required by FAR 52.212-3 and are maintained electronically at the System for Award Management (SAM) website, SAM.gov, and may be found by searching under Oracle’s UEI Number (HE98WLUBNW88).
Bidder must include all persons who reviewed or edited the Contract terms, and their applicable role and title within your organization.	Oracle is a global corporation with a widely diverse workforce. Oracle’s internal policies and processes regarding how it responds to Requests for Proposal (RFPs) are confidential.
7. Insurance Requirements	
Bidder must affirm agreement with the attached Schedule C (Insurance Requirements). If not in agreement, written exceptions in accordance with the Evaluation Process section of the Proposal Instructions must be provided with the Bidder’s proposal.	Yes. Please see SCHEDULE C - INSURANCE REQUIREMENTS in this document for track changes in accordance with the Evaluation Process section of the Proposal.

Information Sought	Bidder Response
8. Michigan Economic Impact	
	Begin Oracle Confidential Information
Number of employees currently employed at locations within the State of Michigan.	■■■■■
Number of additional employees to be employed at locations within the State of Michigan if awarded this Contract (if any)	■■■■■■■■■■
Minimum wage paid to employees employed at locations within the State of Michigan.	■■■■■
Average wage paid to employees employed at locations within the State of Michigan.	■■■■■
Percentage of employees employed at locations within the State of Michigan that are covered by employer-provided health insurance.	■■■■■■■■■■ ■■■■■■■■■■
	End Oracle Confidential Information
9. Labor, Antidiscrimination and Environmental Laws Compliance	
Bidder must disclose any violations of state or federal labor, antidiscrimination and employment laws and regulations received within the past five years.	Oracle is subject to various legal proceedings and claims, either asserted or unasserted, which arise in the ordinary course of business and which may include enforcement action or investigations by government agencies that could result in fines or penalties. Oracle is a public company and, as such, reports all litigation and/or legal claims that may have a material, adverse effect on the operation of its business in its Form 10-K filings and any subsequent updates with the Securities and Exchange Commission. Oracle's Form 10K can be found at http://investor.oracle.com/financial-reporting/sec-filings/default.aspx . Oracle is not aware of any such enforcement actions or investigations that would materially impact the provisions of good or services to the State of Michigan Department of Technology Management & Budget.
Bidder must disclose any violations of state or federal environmental laws and regulations received within the past five years.	Oracle has not been subject to any environmental enforcement, fines or notices of violation during the last 5 years.
10. Supplier Diversity	
Does your company have a supplier diversity program or training?	Yes.

Information Sought	Bidder Response
Bidder agrees that if Bidder is awarded a contract with a dollar amount of \$500,000 or greater from this Solicitation, Bidder shall provide a copy of their current EEO-1 demographic report provided that Bidder meets Federal requirements to file an EEO-1 report.	Yes.
11. Other	
Classification of Employees. I certify that the company has properly classified its employees in accordance with federal/state labor and employment laws.	Yes.
Abusive Labor Practices. The Contractor certifies that it will not furnish any Deliverable that was produced fully or partially by forced labor, forced or indentured child labor, or indentured servitude.	Yes.
Certification of Michigan Business- Public Act 431 of 1984, Sec. 268. I certify that the company has, pursuant to the provisions of Sec 268 of Public Act 431 of 1984, filed a Michigan Business Tax Corporate Income Tax Return. I certify that the company has, pursuant to the provisions of Sec 268 of Public Act 431 of 1984, filed a Michigan Income Tax return showing income generated in, or attributed to the State of Michigan. I certify that the company has, pursuant to the provisions of Sec 268 of Public Act 431 of 1984, withheld Michigan Income Tax from compensation paid to the company's owners and remitted the tax to the Michigan Department of Treasury.	Yes.
Iran Linked Business- Public Act 517 of 2012. I certify that the Company is not an Iran-Linked business as defined by Public Act 517 of 2012.	Yes.
Clean Corporate Citizen. I certify that the Company is a Clean Corporate Citizen as defined by the Environmental Protection Act, 1994 PA 451.	No.
Convict Labor. The Contractor certifies that if using convict labor, it is complying with all applicable state and federal laws and policies.	Yes.

Information Sought	Bidder Response
SOM Debt/Tax Payment. All SOM tax/debts. I certify that all applicable State of Michigan taxes are paid, and that no outstanding debt is owed to the State of Michigan.	Yes.
Authorization to Verify Information Provided by Vendor. I authorize the State to verify that all information provided in this registration, in bidding and contracting documents, and any attachments or supplement documents and processes are accurate.	Yes.
12. Response to State Requests	
Bidder agrees to respond, by established deadlines, to all requests from the State including but not limited to, clarification requests, notices of deficiency, and proposed changes to Contract Terms.	Choose an item. Oracle agrees to use reasonable efforts to respond to all State requests in a timely manner. Oracle is unable to commit to providing responses to unknown requests by unknown deadlines, but looks forward to doing business with the State of Michigan and would welcome the opportunity to discuss our proposal.

Attachment 1, Resume Templates

The Contractor must use the Résumé Summary Template(s) provided in this attachment. Résumés for personnel should not exceed four (4) pages each in length.

Résumés for personnel must include relevant skills, experience, and references.

It is acceptable for one person to fill multiple key positions for this project. However, a key résumé template must be completed for each key position to demonstrate that the required skills and experience are met and the proposal must demonstrate that the individual is assigned to the project for sufficient hours to meet the requirements of all roles for which they have been designated.

The State may evaluate such criteria as time spent by the personnel directly supporting similar solutions, and comparable size, scope and complexity of implementations accomplished.

The Contractor must submit a Letter of Commitment for key personnel who will be assigned to the Contract, signed by the identified resource, stating their commitment to work for the Contractor on this project contingent on award of the bid. If the identified personnel are currently assigned to another State project the Contractor must provide a letter signed by the State Program Manager releasing the individual from the other project upon execution of the Contract.

Begin Oracle Confidential Information

Contractor Program Manager

Proposed Resource Name:	[REDACTED]
Proposed Classification:	[REDACTED]
If resource is associated with a subcontractor provide name of company:	[REDACTED]
Percentage of time resource will be allocated to project:	[REDACTED]
Contractor list the skills and experience that qualify the individual for the duties and responsibilities on this project for the proposed role. Provide the name of the project(s) and the year(s) the experience was obtained.	[REDACTED] [REDACTED] [REDACTED] [REDACTED] [REDACTED] [REDACTED] [REDACTED] [REDACTED]

The experience requirements are restated as follows:

Required Skills	Bidder's Response
5 years of experience managing projects of similar size and scope of this solicitation.	Does resource have this required skill: [REDACTED] Description of skills and experience: [REDACTED] [REDACTED] Name of project(s) and year(s) experience was obtained: [REDACTED] Reference clients: [REDACTED] [REDACTED] [REDACTED]
5 years of experience facilitating meetings w/ clients & stakeholders	Does resource have this required skill: [REDACTED] Description of skills and experience: [REDACTED] [REDACTED] Name of project(s) and year(s) experience was obtained: [REDACTED] [REDACTED] [REDACTED] [REDACTED] [REDACTED] [REDACTED]

Required Skills	Bidder's Response
	■ [REDACTED] ■ [REDACTED] ■ [REDACTED] ■ [REDACTED] ■ [REDACTED] ■ [REDACTED]
Excellent communication and organization skills required Ability to motivate and guide staff to ensure accurate, efficient, and timely delivery of service	Does resource have this required skill: [REDACTED] Description of skills and experience: [REDACTED] Name of project(s) and year(s) experience was obtained: [REDACTED] [REDACTED] ■ [REDACTED] ■ [REDACTED] ■ [REDACTED] ■ [REDACTED] ■ [REDACTED] ■ [REDACTED] ■ [REDACTED] ■ [REDACTED] ■ [REDACTED] ■ [REDACTED]
Education: Bachelor's degree	List your degree and the conferring institution: [REDACTED]
List client references for work performed to meet the requirements stated above, and all projects the proposed resource has worked on in the last three (3) years. A minimum of three (3) references are required. By submission of this information, the Contractor and identified key person authorize the State of Michigan to contact references and previous employers provided to verify the accuracy of the information. Provide the identified information for each:	
Start Date: [REDACTED]	End Date: [REDACTED]
Client/Project: Employer: [REDACTED]	
Title/Percentage of time: [REDACTED]	
Description: [REDACTED] [REDACTED] [REDACTED]	

Start Date:	End Date:
Client/Project:	
Employer:	
Title/Percentage of time:	
Description:	

Start Date:	End Date:
Client/Project:	
Employer:	
Title/Percentage of time:	
Description:	

EDUCATION

Education		
Degree (i.e. PhD, Master's, Bachelors)		Year Completed:
Program	Major(s) area of study:	Minor area of study:
University		

Additional Education		
Degree (i.e. PhD, Master's, Bachelors)		Year Completed:
Program	Major(s) area of study:	Minor area of study:
University		

TRAINING – Provide any relevant technical or professional training related to the role resource will be providing on this project.

Technical or Professional Training	
Course Name	
Topic	

Date taken	
------------	--

Course Name	
Topic	
Date Taken	

End Oracle Confidential Information

Begin Oracle Confidential Information

Contractor Contract Administrator

Proposed Resource Name:	
Proposed Classification:	
If resource is associated with a subcontractor provide name of company:	
Percentage of time resource will be allocated to project:	
Contractor list the skills and experience that qualify the individual for the duties and responsibilities on this project for the proposed role. Provide the name of the project(s) and the year(s) the experience was obtained.	

The experience requirements are restated as follows:

Required Skills	Bidder's Response
5 years of experience facilitating, documenting and monitoring Contractor responsibilities and activities in the fulfillment of Contract requirements.	Does resource have this required skill: Description of skills and experience: Name of project(s) and year(s) experience was obtained:
5 years of experience facilitating meetings w/ clients & stakeholders	Does resource have this required skill: Description of skills and experience: Name of project(s) and year(s) experience was obtained:
Excellent communication and organization skills required Ability to motivate and guide staff to ensure accurate, efficient, and timely delivery of service	Does resource have this required skill: Description of skills and experience: Name of project(s) and year(s) experience was obtained:
Education: Bachelor's degree	List your degree and the conferring institution:

List client references for work performed to meet the requirements stated above, and all projects the proposed resource has worked on in the last three (3) years. A minimum of three (3) references are required. By submission of this information, the Contractor and identified key person authorize the State of Michigan to contact references and previous employers provided to verify the accuracy of the information. Provide the identified information for each:

Start Date:	End Date:
Client/Project:	
Employer:	
Title/Percentage of time:	

Description:
█ [REDACTED]
█ [REDACTED]

Start Date:	End Date:
█	█
Client/Project:	
Employer:	
█	
Title/Percentage of time:	
█	
Description:	
█ [REDACTED]	
█ [REDACTED]	
█ [REDACTED]	
█ [REDACTED]	

Start Date:	End Date:
█	█
Client/Project:	
Employer:	
█	
Title/Percentage of time:	
█	
Description:	
█ [REDACTED]	
█ [REDACTED]	
█ [REDACTED]	
█ [REDACTED]	
█ [REDACTED]	
█ [REDACTED]	

EDUCATION

Education		
Degree (i.e. PhD, Master's, Bachelors)	█	Year Completed:
		█
Program	Major(s) area of study:	Minor area of study:
	█	
University	█	

Additional Education		
Degree (i.e. PhD, Master's, Bachelors)		Year Completed:
Program	Major(s) area of study:	Minor area of study:

University	
TRAINING – Provide any relevant technical or professional training related to the role resource will be providing on this project.	
Technical or Professional Training	
Course Name	
Topic	(include credit hours if applicable)
Date taken	

End Oracle Confidential Information

Begin Oracle Confidential Information

Contractor Security Officer

Proposed Resource Name:	
Proposed Classification:	
If resource is associated with a subcontractor provide name of company:	
Percentage of time resource will be allocated to project:	
Contractor list the skills and experience that qualify the individual for the duties and responsibilities on this project for the proposed role. Provide the name of the project(s) and the year(s) the experience was obtained.	

The experience requirements are restated as follows:

Required Skills	Bidder's Response
5 years of experience managing the security for similar size and scope of this solicitation.	Does resource have this required skill: Description of skills and experience: Name of project(s) and year(s) experience was obtained:
5 years of experience facilitating compliance for clients & stakeholders	Does resource have this required skill: Description of skills and experience: Name of project(s) and year(s) experience was obtained:
Excellent communication and organization skills required Ability to motivate and guide staff to ensure secure, accurate, efficient, and timely delivery of service	Does resource have this required skill: Description of skills and experience: Name of project(s) and year(s) experience was obtained:
Education: Bachelor's degree Certification: Security certifications actively held	List your degree and the conferring institution and active security certifications:

List client references for work performed to meet the requirements stated above, and all projects the proposed resource has worked on in the last three (3) years. A minimum of three (3) references are required. By submission of this information, the Contractor and identified key person authorize the State of Michigan to contact references and previous employers provided to verify the accuracy of the information. Provide the identified information for each:

Start Date:	End Date:
Client/Project:	
Employer:	

Title/Percentage of time:	
[REDACTED]	
Description:	
[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]

Start Date:	End Date:
[REDACTED]	[REDACTED]
Client/Project:	
Employer:	
[REDACTED]	
Title/Percentage of time:	
[REDACTED]	
Description:	
[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]

Start Date:	End Date:
[REDACTED]	[REDACTED]
Client/Project:	
Employer:	
[REDACTED]	
Title/Percentage of time:	
[REDACTED]	
Description:	
[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]

EDUCATION

Education		
Degree (i.e. PhD, Master's, Bachelors)		Year Completed:
Program	Major(s) area of study: History	Minor area of study:
University		

Additional Education		
Degree (i.e. PhD, Master's, Bachelors)		Year Completed:
Program	Major(s) area of study: Education	Minor area of study:
University		

TRAINING – Provide any relevant technical or professional training related to the role resource will be providing on this project.

Technical or Professional Training	
Course Name	
Topic	(include credit hours if applicable)
Date taken	

Certifications/Affiliations	
Name	
Topic/Description	
Date completed & current expiration	

Certifications/Affiliations	
Name	
Topic/Description	
Date completed & current expiration	

Certifications/Affiliations	
Name	
Topic/Description	
Date completed & current expiration	

End Oracle Confidential Information

Initial Response: High-level Terms and Conditions concepts

The State intends to execute an addendum to any terms offered by Bidder. This addendum is intended to supersede and take precedence over those terms, including Bidder's security terms and data privacy addendums.

☐	I confirm the above requirement and agree with no exception.
☒	I have reviewed the above requirement and have noted all exception(s) below.
List all exceptions:	
Oracle cannot agree to this concept at this time because we do not know the final terms that will be included in the addendum. If Oracle is awarded the contract, Oracle looks forward to discussing the final addendum terms, including this order of precedence.	

The following is a list of areas of contractual concerns that the addendum may address. The State of Michigan will evaluate Bidder's responses to this list to determine Bidder acceptability for the IaaS Expansion Program. Responses may be taken into consideration by the State in making a Best Value Determination or otherwise in Bidder evaluation as part of a potential bid award. This list, however, is not exhaustive and non-binding on the State. Capitalized terms may be found in the State's template Software Terms, which are provided as a reference and for illustrative purposes only.

1. Bidder agrees to the definition of Access, found in the State's template Software Terms.

☐	I confirm the above requirement and agree with no exception.
☒	I have reviewed the above requirement and have noted all exception(s) below.
List all exceptions:	
Oracle takes exception to this concept and recommends that Oracle's definitions be used in the resulting contract so that the contract is consistent with Oracle's orders and product-specific and/or service-specific documentation. Modifying Oracle's definitions may cause inaccuracies in how the contract terms and documents reflect the products and/or services.	

2. Bidder agrees to the definition of State Data, found in the State's template Software Terms.

☐	I confirm the above requirement and agree with no exception.
☒	I have reviewed the above requirement and have noted all exception(s) below.
List all exceptions:	
Oracle takes exception to this concept and recommends that Oracle's definitions be used in the resulting contract so that the contract is consistent with Oracle's orders and product-specific and/or service-specific documentation. Modifying Oracle's definitions may cause inaccuracies in how the contract terms and documents reflect the products and/or services.	

3. Bidder agrees to the definition of Work Product, found in the State's template Software Terms.

☐	I confirm the above requirement and agree with no exception.
☒	I have reviewed the above requirement and have noted all exception(s) below.
List all exceptions:	
Oracle takes exception to this concept and recommends that Oracle's definitions be used in the resulting contract so that the contract is consistent with Oracle's orders and product-specific and/or service-specific documentation. Modifying Oracle's definitions may cause inaccuracies in how the contract terms and documents reflect the products and/or services.	

4. Bidder will disclose all subcontractors with Access to State Data. Disclosures may be provided on Bidder's websites in a manner available to all similarly situated customers.

☐	I confirm the above requirement and agree with no exception.
☒	I have reviewed the above requirement and have noted all exception(s) below.
List all exceptions:	
Oracle takes exception to the use of the State's definitions as they do not correspond to Oracle's product-specific and/or service-specific documentation. Oracle offers the following clarification: Oracle maintains a list of subprocessors that may Process the Customer's Personal Data for certain services available on Oracle's My Oracle Support Cloud Portal website and accessible by Customers.	

5. Bidder agrees to register with the State at <http://www.michigan.gov/SIGMAVSS> to receive electronic fund transfer payments. To the extent Bidder wishes to retain a subcontractor for the acceptance and transmittal of payment ONLY, Bidder agrees that payment to the subcontractor waives any and all claims against the State for non-payment, and Bidder may not terminate the State's access to Bidder offerings in the event Bidder's subcontractor fails to transmit payment.

☐	I confirm the above requirement and agree with no exception.
☒	I have reviewed the above requirement and have noted all exception(s) below.
List all exceptions:	
Oracle takes exception to the requirement to register with the State's portal to receive electronic fund transfer payments. Electronic fund transfer payments must be remitted to Oracle via the address provided to customers.	

6. Bidder agrees that Bidder will contractually meet obligations set forth in the State's template Data Security schedule appended to the State's template Software Terms.

☐	I confirm the above requirement and agree with no exception.
☒	I have reviewed the above requirement and have noted all exception(s) below.
List all exceptions:	
Oracle has included track changes on Schedule E – Data Security Requirements reflecting its exceptions. In the event of an award, Oracle looks forward to discussing contract terms with the State as part of the resulting post-award contract negotiations.	

7. Bidder agrees that Bidder will contractually meet obligations set forth in Bidder's Service Level Agreement, including complying with Bidder obligations with respect to Service Credits.

☒	I confirm the above requirement and agree with no exception. <u>Bidder's Service Level Agreement is included in its Response to Schedule D.</u>
☐	I have reviewed the above requirement and have noted all exception(s) below.
List all exceptions:	

8. Bidder agrees that the State may terminate all or part of any awarded contract at any time, for any reason, including budget shortfalls.

☐	I confirm the above requirement and agree with no exception.
☒	I have reviewed the above requirement and have noted all exception(s) below.
List all exceptions:	
Oracle offers the following clarification: the State may terminate the resulting contract for Cloud Services at any time, for any reason, including budget shortfalls, by giving Oracle 30 days prior written notice of such termination. Such termination will not affect orders outstanding at the time of termination.	

9. Bidder agrees to forgo the right for Bidder to terminate a subsequently awarded Contract at any time, or for any reason, except for violation of law or Bidder's license restrictions. Bidder may change service offerings utilized by the State only if Bidder provides a substantially equivalent offering and provides notice to the State of the change.

☐	I confirm the above requirement and agree with no exception.
☒	I have reviewed the above requirement and have noted all exception(s) below.
List all exceptions:	
Oracle takes exception to this concept limiting its termination rights. Oracle must maintain the right to terminate a contract for Cloud Services or order, as applicable, if the customer has not cured a breach of a material term of such contract and to end the relevant services. These termination rights are essential in order for Oracle to be able to protect its rights under a contract, such as to be paid, to protect its intellectual property, and to ensure a customer complies with its obligations. Such a termination right is consistent with industry standards.	
Regarding the change in service offerings, Oracle offers the following clarification: for IaaS and PaaS services, which are purchased on a Universal Credits Model ("UCM"), the customer will be notified if a service is no longer being provided and the customer already has the flexibility to use everything that is on the rate card or within the UCM service description.	

10. Bidder agrees and understands that the State may not indemnify Bidder, Bidder's subcontractors or any third parties.

☐	I confirm the above requirement and agree with no exception.
☒	I have reviewed the above requirement and have noted all exception(s) below.
List all exceptions:	
Oracle takes exception to this concept because it cannot contractually agree to terms on behalf of third parties. Oracle proposes the following alternative to address this concept: "Bidder agrees and understands that to the extent that the State is prohibited from indemnifying Oracle or another third party by applicable Michigan law, any term or condition in the Contract that requires the State to indemnify Oracle or a third party shall be void."	

11. Bidder agrees and understands that the State must retain control of any defense provided by Bidder pursuant to Bidder's indemnification obligations.

☐	I confirm the above requirement and agree with no exception.
☒	I have reviewed the above requirement and have noted all exception(s) below.
List all exceptions:	
Oracle takes exception to this concept. Oracle must maintain sole control of the defense and settlement of any infringement claim involving our intellectual property, as the resolution of such a claim will most likely impact many different Oracle customers. Oracle can agree in concept that the State will give Oracle control of the defense subject to approval of the Michigan Attorney General.	

12. Bidder understands that the State is statutorily obligated to comply with the Michigan Freedom of Information Act, MCL 15.231 *et seq.* "FOIA"

☒	I confirm the above requirement and agree with no exception.
☐	I have reviewed the above requirement and have noted all exception(s) below.
List all exceptions:	

13. Bidder understands that pursuant to MCL 18.1470, the State or its designee may audit Contractor to verify compliance with this Contract.

☒	I confirm the above requirement and agree with no exception.
☐	I have reviewed the above requirement and have noted all exception(s) below.
List all exceptions:	

14. Bidder understands that the State will not be bound by any terms requiring indemnification by the State to third- parties; consent to arbitration; provisions regarding audits; provisions regarding remote access to State systems; agreeing to be bound by the laws of another state; or to waive any claims or defenses, including governmental or sovereign immunity contained in any of the product-specific end user license agreements (EULA(s)) or any other documents, policies, or terms located in links referenced herein.

☐	I confirm the above requirement and agree with no exception.
☒	I have reviewed the above requirement and have noted all exception(s) below.
List all exceptions:	
Oracle takes exception to this concept. Oracle cannot contractually agree to terms on behalf of third parties. The references to <i>provisions regarding audits</i> and <i>provisions regarding remote access to State systems</i> are overbroad and vague. It is also unclear whether the State will not be bound by these terms in any EULAs or any other documents, policies, or terms located in links, or if that qualification only applies to terms waiving claims or defenses. We can agree in concept that to the extent applicable Michigan law expressly prohibits the State from being bound by any terms, those terms shall be void. If we are misunderstanding the intent of this provision, we look forward to discussing it further.	

15. Bidder agrees and understands that State Data may not be used for commercial purposes, nor may it be comingled with data from other similarly situated customers, whether to train Artificial Intelligence or for any other reason.

☐	I confirm the above requirement and agree with no exception.
☒	I have reviewed the above requirement and have noted all exception(s) below.
List all exceptions:	
Oracle takes exception to this concept and offers the following explanation. Your Content as described in the Oracle Cloud Services Agreement may be used as described in Section 11 of the Oracle Cloud Services Agreement. Any discussions regarding Artificial Intelligence must be specific to the products and/or services the customer plans to use.	

16. Bidder agrees that, if the State determines that State or federal rules or regulations require the appendage of specific contractual language in contracts related to specific types of data, including by not limited CJIS and IRS/FTI data, Bidder will append such required contractual language to any awarded contract.

☐	I confirm the above requirement and agree with no exception.
☒	I have reviewed the above requirement and have noted all exception(s) below.
List all exceptions:	
Oracle takes exception to this concept as Oracle has an expansive portfolio of products and services and we cannot evaluate and accept detailed terms without knowing what is being purchased.	
Oracle offers the following alternative to address this concept, which is consistent with the approach that the State previously accepted from Google and AWS: "Oracle agrees that, if the State determines that State or federal rules or regulations require the appendage of specific contractual language in contracts related to specific types of data, including by not limited CJIS and IRS/FTI data, Oracle will append such required contractual language, as mutually agreed by the parties, to this Contract. In the event that Oracle, in its sole discretion, determines that it cannot comply with the required contractual language, the workloads shall not be part of the scope."	

17. Bidder understands and agrees that, if, upon contract award and use of Bidder systems by the State, Bidder does not comply with its data security and privacy obligations, Bidder will provide data breach services as requested by the State to the State and its citizens at no additional cost to the State.

☐	I confirm the above requirement and agree with no exception.
☒	I have reviewed the above requirement and have noted all exception(s) below.
List all exceptions:	
Oracle takes exception to this concept because it is vague and overbroad. The concept applies to Bidder's failure to comply with its <i>data security and privacy obligations</i> rather than an actual data breach and it would give the State broad discretion to request undefined <i>data breach services</i> at no cost.	
Oracle proposes that this concept be addressed by a <i>supercap</i> for liability for misappropriation of Your Content, and that the following would be expressly categorized as direct damages under such supercap: reasonable costs for legally required breach notification to individuals whose personal information was misappropriated and reasonable costs for twelve months of credit monitoring for such individuals.	

18. Bidder understands and agrees that Bidder will ensure compliance with all federally mandated accessibility requirements.

☐	I confirm the above requirement and agree with no exception.
☒	I have reviewed the above requirement and have noted all exception(s) below.
List all exceptions:	
The extent to which an Oracle product is, prior to any customizations, capable of providing comparable access to individuals with disabilities consistent with the applicable provisions of the Architectural and Transportation Barriers Compliance Board standards set out in 36 CFR Part 1194 (known as 'Section 508'), effective as of June, 2001, or the Revised version in Appendix A (known as 'Revised Section 508') effective as of January, 2018 and the Web Content Accessibility Guidelines (WCAG) version 2.0 level AA, or the Web Content Accessibility Guidelines (WCAG) version 2.1 level AA, or the Web Content Accessibility Guidelines (WCAG) version 2.2 level AA is indicated by the dependencies, comments and exceptions (some of which may be significant, if any) noted on the applicable Accessibility Conformance Report (ACR) based on the Voluntary Product Accessibility Templates (VPAT) available at www.oracle.com/accessibility for each product, when they are used in accordance with Oracle's associated documents and other written information, and provided that any assistive technologies and any other products used with them properly interoperate with them. In the event that no ACR is available for a particular Oracle product, please contact the Oracle Accessibility Program Office at accessible_ww@oracle.com. In some cases, the outcome may be that a product is still being evaluated for accessibility, may be scheduled to meet accessibility standards in a future release, or may not be scheduled to meet accessibility standards at all. Oracle Support customers with disabilities may use the online My Oracle Support or call Oracle Support at 1 800.223.1711. Hearing-impaired customers in the US who wish to speak to an Oracle Support representative may use a telecommunications relay service (TRS). Information about the TRS is available at https://www.fcc.gov/file/15195/download(PDF), and a list of telephone numbers is available at http://www.fcc.gov/cgb/dro/trsphonebk.html. International hearing-impaired customers should use the TRS at +1.605.224.1837. Oracle Support will respond to product accessibility issues according to the current Technical Support Policies. No other terms, conditions, statements or any other such representations regarding or related to accessibility shall apply to the Oracle products. Oracle cannot make any commitments about future product directions, including plans to address accessibility or the availability of ACRs. Product direction remains at the sole discretion of Oracle.	

19. Bidder agrees that it is neither currently engaged in nor will engage in the boycott of a person based in or doing business with a strategic partner as described in 22 USC 8601 to 8606.

☒	I confirm the above requirement and agree with no exception.
☐	I have reviewed the above requirement and have noted all exception(s) below.
List all exceptions:	

20. Bidder agrees that any awarded contract will be governed by the laws of the State of Michigan.

☒	I confirm the above requirement and agree with no exception.
☐	I have reviewed the above requirement and have noted all exception(s) below.
List all exceptions:	

21. Bidder agrees to Section 43 Administrative Fee and Reporting and Section 44 Extended Purchasing Program in the reference terms provided below to allow this Contract to be extended to MiDEAL members and other States and Contractor must pay an administrative fee of 1% on all payments made to Contractor under the Contract for those transactions.

☐	I confirm the above requirement and agree with no exception.
☒	I have reviewed the above requirement and have noted all exception(s) below.
List all exceptions:	
Oracle offers the following clarifications: Contractor agrees to pay an administrative fee of 1% on all invoices for products and/or services issued under the Contract including transactions with MiDEAL members. Administrative fee payments must be made by check and remitted to the following address: The Department of Technology, Management and Budget Financial Services - Cashier Unit Lewis Cass Building 320 South Walnut St. PO Box 30681 Lansing, MI 48909 Contractor must submit an itemized purchasing activity report, which includes at a minimum, the name of the purchasing entity and the total dollar amount invoiced. Reports should be emailed to MiDeal@michigan.gov.	

By signing below, I as **legal counsel** for the Bidder, hereby certify that I have thoroughly reviewed and understand the above statements and that I confirm that the legal implications of the proposed statements above have been carefully considered and that the Bidder is prepared to comply with the obligations and requirements as outlined.

Oracle takes exception to this language as Oracle attorneys do not have document signing authority pursuant to Oracle's policies. If Oracle is down-selected or awarded the contract, we would work to try to get an exception to the policy if the State deems it necessary.

Solicitation Number

Solicitation Title

Attorney Signature and License Number with State

Date

Printed Name, Title, Company

Software Contract Terms and Conditions

Contractor please provide your proposed terms applicable to this purchase for the State's review. All terms must be provided either by static link or appended as part of your bid. The State will then work with selected Bidders to draft an Addendum to bidder's terms that are specific to each bidder. Terms and conditions will be evaluated and contribute to the evaluation of Contractor's bid response.

BIDDER RESPONSE:

Please see the files, *Oracle General Terms and Conditions State of MI Dept of Technology Mgmt & Budget_RFP No. 250000000414.pdf* and *Cloud Services Agreement.pdf*, included with our response.

The following standard State's Terms and Conditions are provided below for reference.

These Terms and Conditions, together with all Schedules (including the Statement(s) of Work), Exhibits and any other applicable attachments or addenda (Collectively this "Contract") are agreed to between the State of Michigan (the "State") and [INSERT COMPANY NAME] ("Contractor"), a [INSERT STATE & ENTITY STATUS, E.G., A MICHIGAN CORPORATION OR A TEXAS LIMITED LIABILITY COMPANY]. This Contract is effective on [MONTH, DAY, YEAR] ("Effective Date"), and unless terminated, will expire on [MONTH, DAY, YEAR] (the "Term").

This Contract may be renewed for up to [Insert # of Renewal Options] additional [Insert # of Years Per Renewal Option] year period(s). Renewal is at the sole discretion of the State and will automatically extend the Term of this Contract. The State will document its exercise of renewal options via a Change Notice.]

1. Definitions. For the purposes of this Contract, the following terms have the following meanings:

"Acceptance" has the meaning set forth in **Section 9**.

"Acceptance Tests" means such tests as may be conducted in as described in **Section 9** and any applicable Statement of Work to determine whether the Software meets the requirements of this Contract and the Documentation.

"Access" means (1) the ability and means to enter a restricted or locked area, room, or physical container containing State Data; or (2) the ability and means to communicate with or otherwise interact with a system, to use system resources to handle information, to gain the information or knowledge of the information the system contains, or to control system components and functions (including physical or technical controls, or having the ability to modify or bypass any or all security controls).

"Affiliate" of a Person means any other Person that directly or indirectly, through one or more intermediaries, controls, is controlled by, or is under common control with, such Person. For purposes of this definition, the term "control" (including the terms "controlled by" and "under common control with") means the direct or indirect ownership of more than fifty percent (50%) of the voting securities of a Person.

"Allegedly Infringing Materials" has the meaning set forth in **Section 18**.

"Authorized Users" means all Persons authorized by the State to access and use the Software under this Contract, subject to the maximum number of users specified in the applicable Statement of Work.

"Business Day" means a day other than a Saturday, Sunday or other day on which the State is authorized or required by law to be closed for business.

"Business Requirements Specification" means the initial specification setting forth the State's business requirements regarding the features and functionality of the Software, as set forth in a Statement of Work.

"Change Notice" means a writing executed by the parties to the Contract memorializing a change to the Contract.

"Change Proposal" has the meaning set forth in Subsection 2.2.

"Change Request" has the meaning set forth in Subsection 2.2.

"Confidential Information" has the meaning set forth in Subsection 22.1.

"Configuration" means State-specific changes made to the Software without Source Code or structural data model changes occurring.

"Contract" has the meaning set forth in the preamble.

"Contract Change" has the meaning set forth in Subsection 2.2.

"Contract Administrator" is the individual appointed by each party to (a) administer the terms of this Contract, and (b) approve any Change Notices under this Contract. Each party's Contract Administrator will be identified in Schedule A or subsequent Change Notices.

"Contractor" has the meaning set forth in the preamble.

"Contractor's Bid Response" means the Contractor's proposal submitted in response to the Solicitation.

"Contractor Hosted" means the Hosted Services and the Operating Environment are provided by Contractor or one or more of its Permitted Subcontractors.

"Contractor Personnel" means all employees of Contractor, or any subcontractors or Permitted Subcontractors involved in the performance of Services hereunder.

"Contractor Project Manager" means the individual appointed by Contractor and identified in Schedule A or subsequent Change Notices to serve as the primary contact, to monitor and coordinate the day-to-day activities of this Contract, and to perform other duties as may be further defined in this Contract, including an applicable Statement of Work.

"Customization" means State-specific changes to the Software's underlying Source Code or structural data model changes.

"Deliverables" means the Software, Documentation, any Hardware, and all other documents and other materials that Contractor is required to or otherwise does provide to the State under this Contract and otherwise in connection with any Services, including all items specifically identified as Deliverables in a Statement of Work and all Work Product.

"Deposit Material" refers to material required to be deposited pursuant to **Section 28**.

"Digital Accessibility Standards" means the accessibility standards provided in the SOM Digital Standards, located at <https://www.michigan.gov/standards>.

"Disaster Recovery Plan" refers to the set(s) of documents, instructions, and procedures which enable the Contractor to respond to accidents, disasters, emergencies, or threats without any stoppage or hindrance in its key operations and to the actions the Contractor takes to meet the Recovery Point and Recovery Time Objectives.

"Documentation" means all user manuals, operating manuals, technical manuals and any other instructions, specifications, documents or materials, in any form or media, that describe the functionality, installation, testing, operation, use, maintenance, support, technical or other components, features or requirements of the Deliverable.

"DTMB" means the Michigan Department of Technology, Management and Budget.

"Effective Date" has the meaning set forth in the preamble.

"Fees" means the fees set forth in the Pricing Schedule attached as **Schedule B**.

"Financial Audit Period" has the meaning set forth in Subsection 23.1.

"Hardware" means all computer hardware or other equipment provided by Contractor under this Contract, if any, including but not limited to any related accessories.

"Harmful Code" means any software, hardware or other technologies, devices or means, the purpose or effect of which is to: (a) permit unauthorized access to, or to destroy, disrupt, disable, encrypt, modify, copy, or otherwise harm or impede in any manner, any (i) computer, software, firmware, data, hardware, system or network, or (ii) any application or function of any of the foregoing or the integrity, use or operation of any data Processed thereby; or (b) prevent the State or any Authorized User from accessing or using the Solution as intended by this Contract, and includes any virus, bug, trojan horse, worm, backdoor or other malicious computer code and any time bomb or drop dead device.

"Hosted Services" means the hosting, management and operation of the: Operating Environment, Software, other services (including support and subcontracted services), and related resources for access and use by the State and its Authorized Users, including any services and facilities related to disaster recovery obligations.

"Implementation Plan" means the schedule included in a Statement of Work setting forth the sequence of events for the performance of Services under a Statement of Work, including the Milestones and Milestone Dates.

"Integration Testing" has the meaning set forth in Section 9.

"Intellectual Property Rights" means all or any of the following: (a) patents, patent disclosures, and inventions (whether patentable or not); (b) trademarks, service marks, trade dress, trade names, logos, corporate names, and domain names, together with all of the associated goodwill; (c) copyrights and copyrightable works (including computer programs), mask works and rights in data and databases; (d)

trade secrets, know-how and other confidential information; and (e) all other intellectual property rights, in each case whether registered or unregistered and including all applications for, and renewals or extensions of, such rights, and all similar or equivalent rights or forms of protection provided by applicable law in any jurisdiction throughout the world.

"Key Personnel" means any Contractor Personnel identified as key personnel in the Contract.

"Loss or Losses" means all losses, including but not limited to, damages, liabilities, deficiencies, claims, actions, judgments, settlements, interest, awards, penalties, fines, costs or expenses of whatever kind, including reasonable attorneys' fees and the costs of enforcing any right to indemnification hereunder and the cost of pursuing any insurance providers.

"Maintenance Release" means any update, upgrade, release or other adaptation or modification of the Software, including any updated Documentation, that Contractor may generally provide to its licensees from time to time during the Term, which may contain, among other things, error corrections, enhancements, improvements or other changes to the user interface, functionality, compatibility, capabilities, performance, efficiency or quality of the Software.

"Milestone" means an event or task described in the Implementation Plan under a Statement of Work that must be completed by the corresponding Milestone Date.

"Milestone Date" means the date by which a particular Milestone must be completed as set forth in the Implementation Plan under a Statement of Work.

"New Version" means any new version of the Software, including any updated Documentation, that the Contractor may from time to time introduce and market generally as a distinct licensed product, as may be indicated by Contractor's designation of a new version number.

"Nonconformity" or **"Nonconformities"** means any failure or failures of a Deliverable, to conform to the requirements of this Contract.

"Offshore Resources" mean resources, including Contractor Personnel, outside of the United States or its territories.

"Open Source Components" means any software component that is subject to any open-source copyright license agreement, including any GNU General Public License or GNU Library or Lesser Public License, or other obligation, restriction or license agreement that substantially conforms to the Open Source Definition as prescribed by the Open Source Initiative or otherwise may require disclosure or licensing to any third party of any source code with which such software component is used or compiled.

"Operating Environment" means, collectively, the platform, environment and conditions on, in or under which the Software is intended to be installed and operate, as set forth in a Statement of Work, including such structural, functional and other features, conditions and components as hardware, operating software, system architecture, configuration, computing hardware, ancillary equipment, networking, software, firmware, databases, data, and electronic systems (including database management systems).

"PAT" Means a document or product accessibility template, including any Information Technology Industry Council Voluntary Product Accessibility Template or VPAT®, that specifies how information and software products, such as websites, applications, software and associated content, conform to the Digital Accessibility Standards.

"Permitted Subcontractor" means any third party hired by Contractor to perform Services for the State under this Contract or that will have Access to or have the ability to control access to State Data or both.

"Person" means an individual, corporation, partnership, joint venture, limited liability company, governmental authority, unincorporated organization, trust, association, or other entity.

"Pricing Schedule" means the schedule attached as **Schedule B**.

"Process" means to perform any operation or set of operations on any data, information, material, work, expression or other content, including to (a) collect, receive, input, upload, download, record, reproduce, store, organize, combine, log, catalog, cross-reference, manage, maintain, copy, adapt, alter, translate or make other improvements or derivative works, (b) process, retrieve, output, consult, use, disseminate, transmit, submit, post, transfer, disclose or otherwise provide or make available, or (c) block, erase or destroy. **"Processing"** and **"Processed"** have correlative meanings.

"Representatives" means a party's employees, officers, directors, partners, shareholders, agents, attorneys, successors and permitted assigns.

"Services" means any of the services, including but not limited to, Hosted Services, installation, configuration, implementation, and/or Support Services, that the Contractor is required to or otherwise does provide under this Contract.

"Service Level Agreement" means the schedule attached as **Schedule D**, setting forth the Support Services Contractor will provide to the State, and the parties' additional rights and obligations with respect thereto.

"Site" means any physical location(s) designated by the State in, or in accordance with, this Contract or a Statement of Work for delivery and installation of the Deliverable, if applicable.

"Software" means Contractor's software as set forth in a Statement of Work, and any Third-Party Components, Maintenance Releases or New Versions provided to the State and any Customizations or Configurations made by or for the State pursuant to this Contract, and all copies of the foregoing permitted under this Contract. If Contractor Hosted, Software includes Contractor's Operating Environment.

"Solicitation" means the State's request to solicit responses for a Solution under this Contract.

"Solution" means Deliverables and Services singularly or in any combination thereof, as applicable, set forth in a Statement of Work.

"Source Code" means the human readable source code of the Software to which it relates, in the programming language in which the Software was written, together with all related flow charts and technical documentation, including a description of the procedure for generating object code, all of a level sufficient to enable a programmer reasonably fluent in such programming language to understand, build, operate, support, maintain and develop modifications, upgrades, updates, adaptations, enhancements, new versions and other derivative works and improvements of, and to develop computer programs compatible with, the Software.

"Specifications" means, for the Software, the specifications collectively set forth in the Business Requirements Specification, Technical Specification, Documentation, Solicitation or Contractor's Bid Response, if any, for such Software, or elsewhere in a Statement of Work.

"State" means the State of Michigan.

"State Data" has the meaning set forth in **Section 21**.

"State Hosted" means the Operating Environment is not provided by Contractor or one or more of its Permitted Subcontractors.

"State Materials" means all materials and information, including but not limited to documents, data, know-how, ideas, methodologies, specifications, software, hardware, content and technology, in any form or media, directly or indirectly provided or made available to Contractor by or on behalf of the State in connection with this Contract.

"State Program Managers" are the individuals appointed by the State, or their designees, to (a) monitor and coordinate the day-to-day activities of this Contract; (b) co-sign off on Acceptance of the Deliverables; and (c) perform other duties as may be specified in a Statement of Work. Program Managers will be identified in Schedule A or subsequent Change Notices.

"State Systems" means the information technology infrastructure, including the computers, software, databases, electronic systems (including database management systems) and networks, of the State or any of its designees.

"Statement of Work" means any statement of work entered into by the parties and incorporated into this Contract. The initial Statement of Work is attached as **Schedule A**.

"Stop Work Order" has the meaning set forth in **Section 15**.

"Support Services" means the maintenance and support services Contractor is required to or otherwise does provide to the State under the Service Level Agreement.

"System" has the meaning set forth in **Schedule I**.

"System Acceptance" has the meaning set forth in **Schedule I**.

"System Integration Testing" has the meaning set forth in Schedule I.

"Technical Specification" means, with respect to any Software, the document setting forth the technical specifications for such Software and included in a Statement of Work.

"Term" has the meaning set forth in the preamble.

"Testing Period" has the meaning set forth in **Section 9**.

"Third-Party Components" means all components, including Open-Source Components, that are included in or used in connection with the Software and are specifically identified by Contractor in the Contractor's Software Bill of Materials, in an applicable Statement of Work or elsewhere in this Contract, or as otherwise required by this Contract, including without limitation as part of the State's Security Accreditation Process defined in Schedule E – Data Security Requirements.

"**Transition Period**" has the meaning set forth in **Section 16**.

"**Transition Responsibilities**" has the meaning set forth in Section 16.

"**Unauthorized Removal**" has the meaning set forth in Subsection 2.5.

"**Unauthorized Removal Credit**" has the meaning set forth in Subsection 2.5.

"**User Data**" means all data, queries, prompts, information and other content of any type and in any format, medium or form, whether audio, visual, digital, screen, GUI or other, that is input, uploaded to, placed into or collected, stored, Processed, generated or output by any user, device, system or network by or on behalf of the State, including but not limited to any and all works, inventions, data, analyses, information that identifies State or State's intended users' devices or equipment, location information, or other information and materials resulting from any use of the Software by or on behalf of the State's intended users under this Contract, even if not input by a user. User Data does not include any data in the possession of or collected by Contractor prior to or independently of the performance of the Services or any use of the Software under this Contract.

"**Warranty Period**" means the 90 calendar-day period commencing on the date of the State's Acceptance of the Software or System (if Contractor is providing Hardware under this Contract) for which Support Services are provided free of charge.

"**Work Product**" means everything made or created by Contractor specifically and solely for the State and which is not generally available to Contractor's other customers, that Contractor is required to, or otherwise does, provide to the State under this Contract including but not limited to Customizations, application programming interfaces, computer scripts, macros, user interfaces, reports, project management documents, forms, templates, and other State-specific documents and related materials together with all ideas, concepts, processes, and methodologies developed in connection with this Contract whether or not embodied in this Contract.

2. Duties of Contractor. Contractor will provide the Solution pursuant to Statement(s) of Work entered into under this Contract. Contractor will provide the Solution in a timely, professional manner and in accordance with the terms, conditions, and Specifications set forth in this Contract and the Statement(s) of Work.

2.1 Statement of Work Requirements. No Statement of Work will be effective unless signed by each party's Contract Administrator. The term of each Statement of Work will commence on the parties' full execution of a Statement of Work and terminate when the parties have fully performed their obligations. The terms and conditions of this Contract will apply at all times to any Statements of Work entered into by the parties and incorporated into this Contract. The State will have the right to terminate such Statement of Work as set forth in **Section 16**. Contractor acknowledges that time is of the essence with respect to Contractor's obligations under each Statement of Work and agrees that prompt and timely performance of all such obligations in accordance with this Contract and the Statements of Work (including the Implementation Plan and all Milestone Dates) is strictly required.

2.2 Change Control Process. The State may at any time request in writing (each, a "**Change Request**") changes to the Contract, including without limitation changes to the Solution or adding a new Statement of Work (each, a "**Contract Change**"). Upon the State's submission of a Change Request, the parties will evaluate and implement all Contract Changes in accordance with this Section.

(a) As soon as reasonably practicable, and in any case within 20 Business Days following receipt of a Change Request, Contractor will provide the State with a written proposal for implementing the requested Contract Change ("**Change Proposal**"), setting forth:

(i) a written description of the proposed Contract Changes to any part of the Solution;

(ii) an amended Implementation Plan reflecting: (A) the schedule for commencing and completing any addition or modification to the Solution; and (B) the effect of such Contract Changes, if any, on completing any other Services under a Statement of Work;

(iii) any additional State Resources Contractor deems necessary to carry out such Contract Changes; and

(iv) any increase or decrease in Fees resulting from the proposed Contract Changes, which increase, or decrease will reflect only the increase or decrease in time and expenses Contractor requires to carry out the Contract Change.

(b) Within 30 Business Days following the State's receipt of a Change Proposal, the State will by written notice to Contractor, approve, reject, or propose modifications to such Change Proposal. If the State proposes modifications, Contractor must modify and re-deliver the Change Proposal reflecting such modifications, or notify the State of any disagreement, in which event the parties will negotiate in good faith to resolve their disagreement. Upon the State's approval of the Change Proposal or the parties' agreement on all proposed modifications each parties' Contractor Administrator will sign a Change Notice.,

(c) However, if the parties fail to enter into a Change Notice within 15 Business Days following the State's response to a Change Proposal, the State may, in its discretion:

- (i) require Contractor to perform or provide the Solution under the existing Statement of Work without the Contract Change;
- (ii) require Contractor to continue to negotiate a Change Notice;
- (iii) initiate a Dispute Resolution Procedure; or
- (iv) notwithstanding any provision to the contrary in a Statement of Work, terminate this Contract under **Subsection 16.1**.

(d) No Contract Change will be effective until the parties have executed a Change Notice. Notwithstanding the foregoing, no Change Notice executed after the Effective Date will be construed to amend or modify this Contract in any way, unless it specifically states its intent to do so and cites the section or sections amended. Except as the State may request in its Change Request or otherwise in writing, Contractor must continue to perform its obligations in accordance with a Statement of Work pending negotiation and execution of a Change Notice. Contractor will use its best efforts to limit any delays or Fee increases from any Contract Change to those necessary to perform the Contract Change in accordance with the applicable Change Notice. Each party is responsible for its own costs and expenses of preparing, evaluating, negotiating, and otherwise processing any Change Request, Change Proposal, and Change Notice.

(e) The performance of any functions, activities, tasks, obligations, roles and responsibilities comprising the Solution as described in this Contract are considered part of the Solution and, thus, will not be considered a Contract Change. This includes the delivery of all Deliverables in accordance with their respective Specifications, and the diagnosis and correction of Nonconformities discovered in Deliverables prior to their Acceptance by the State or, subsequent to their Acceptance by the State, as necessary for Contractor to fulfill its associated warranty requirements and its Support Services under this Contract.

(f) Contractor may, on its own initiative and at its own expense, prepare and submit its own Change Request to the State. However, the State will be under no obligation to approve or otherwise respond to a Change Request initiated by Contractor.

2.3 Contractor Personnel.

(a) Contractor is solely responsible for all Contractor Personnel and for the payment of their compensation, including, if applicable, withholding of income taxes, and the payment and withholding of social security and other payroll taxes, unemployment insurance, workers' compensation insurance payments and disability benefits.

(b) Prior to any Contractor Personnel performing any Services, Contractor will:

- (i) ensure that such Contractor Personnel have the legal right to work in the United States;
- (ii) upon request, require such Contractor Personnel to execute written agreements, in form and substance acceptable to the State, that bind such Contractor Personnel to confidentiality provisions that are at least as protective of the State's information (including all Confidential Information) as those contained in this Contract; and

(iii) upon request, or as otherwise specified in a Statement of Work, perform background checks on all Contractor Personnel prior to their assignment. The scope is at the discretion of the State and documentation must be provided as requested. Contractor is responsible for all costs associated with the requested background checks. The State, in its sole discretion, may also perform background checks. Pursuant to Michigan law, all agencies subject to IRS Pub. 1075 are required to ask the Michigan State Police to perform fingerprint background checks on all employees, including Contractor and subcontractor employees, who may have Access to any database of information maintained by the federal government that contains confidential or personal information, including, but not limited to, federal tax information. Further, pursuant to Michigan law, any agency described above is prohibited from providing Contractors or subcontractors with the result of such background check. For more information, please see Michigan Public Act 427 of 2018.

(c) Contractor and all Contractor Personnel will comply with all rules, regulations, and policies of the State that are communicated to Contractor in writing, including security procedures concerning systems and data and remote access, building security procedures, including the restriction of access by the State to certain areas of its premises or systems, and general health and safety practices and procedures.

(d) The State reserves the right to require the removal of any Contractor Personnel found, in the judgment of the State, to be unacceptable. The State's request must be written with reasonable detail outlining the reasons for the removal request. Replacement personnel for the removed person must be fully qualified for the position. If the State exercises this right, and Contractor cannot immediately replace the removed personnel, the State agrees to negotiate an equitable adjustment in schedule or other terms that may be affected by the State's required removal.

2.4 Contractor Project Manager. Throughout the Term of this Contract, Contractor must maintain a Contractor employee acceptable to the State to serve as Contractor Project Manager, who will be considered Key Personnel of Contractor.

(a) Contractor Project Manager must:

- (i) have the requisite authority, and necessary skill, experience, and qualifications, to perform in such capacity;
- (ii) be responsible for overall management and supervision of Contractor's performance under this Contract; and
- (iii) be the State's primary point of contact for communications with respect to this Contract, including with respect to giving and receiving all day-to-day approvals and consents.

(b) Contractor Project Manager must attend all regularly scheduled meetings as set forth in the Implementation Plan and will otherwise be available as set forth in a Statement of Work.

(c) Contractor will maintain the same Contractor Project Manager throughout the Term of this Contract, unless:

- (i) the State requests in writing the removal of Contractor Project Manager; or
- (ii) the State consents in writing to any removal requested by Contractor in writing; or
- (iii) the Contractor Project Manager ceases to be employed by Contractor, whether by resignation, involuntary termination or otherwise.

(d) Upon the occurrence of any event set forth in **Subsections 2.4(c)(i-iii)** above, Contractor will promptly replace its Contractor Project Manager. Such replacement will be subject to the State's prior written approval.

2.5 Contractor's Key Personnel.

(a) The State has the right to recommend and approve in writing the initial assignment, as well as any proposed reassignment or replacement, of any Key Personnel. Before assigning an individual to any Key Personnel position, Contractor will notify the State of the proposed assignment, introduce the individual to the State Program Managers or

their designees, and provide the State with a resume and any other information about the individual reasonably requested by the State. The State reserves the right to interview the individual before granting written approval. In the event the State finds a proposed individual unacceptable, the State will provide a written explanation including reasonable detail outlining the reasons for the rejection.

(b) Contractor will not remove any Key Personnel from their assigned roles on this Contract without the prior written consent of the State. The Contractor's removal of Key Personnel without the prior written consent of the State is an unauthorized removal ("**Unauthorized Removal**"). An Unauthorized Removal does not include replacing Key Personnel for reasons beyond the reasonable control of Contractor, including illness, disability, leave of absence, personal emergency circumstances, resignation, or for cause termination of the Key Personnel's employment. Any Unauthorized Removal may be considered by the State to be a material breach of this Contract.

(c) It is further acknowledged that an Unauthorized Removal will interfere with the timely and proper completion of this Contract, to the loss and damage of the State, and that it would be impracticable and extremely difficult to determine and remedy the actual damage sustained by the State as a result of any Unauthorized Removal. Therefore, Contractor and the State agree that in the case of any Unauthorized Removal in respect of which the State does not elect to exercise its rights under **Section 16**, Contractor will issue to the State an amount equal to \$25,000 per individual (each, an "**Unauthorized Removal Credit**").

(d) Contractor acknowledges and agrees that each of the Unauthorized Removal Credits assessed under **Subsection 2.5(c)** above: (i) is a reasonable estimate of and compensation for the anticipated or actual harm to the State that may arise from the Unauthorized Removal, which would be impossible or very difficult to accurately estimate; and (ii) may, at the State's option, be credited or set off against any Fees or other charges payable to Contractor under this Contract.

2.6 Subcontractors. Contractor must obtain prior written approval of the State, which consent may be given or withheld in the State's sole discretion, before engaging any Permitted Subcontractor to provide Services to the State under this Contract. Engagement of any subcontractor or Permitted Subcontractor by Contractor does not relieve Contractor of its representations, warranties or obligations under this Contract. Without limiting the foregoing, Contractor will:

- (a) be responsible and liable for the acts and omissions of each such subcontractor (including such Permitted Subcontractor and Permitted Subcontractor's employees who, to the extent providing the Solution, will be deemed Contractor Personnel) to the same extent as if such acts or omissions were by Contractor or its employees;
- (b) be responsible for all fees and expenses payable to, by or on behalf of each subcontractor and Permitted Subcontractor in connection with this Contract, including, if applicable, withholding of income taxes, and the payment and withholding of social security and other payroll taxes, unemployment insurance, workers' compensation insurance payments and disability benefits; and
- (c) notify the State of the location of the Permitted Subcontractor and indicate if it is located within the United States.

3. Notices. All notices and other communications required or permitted under this Contract must be in writing and will be considered given and received: (a) when verified by written receipt if sent by courier; (b) when received if sent by mail without verification of receipt; or (c) when verified by automated receipt or electronic logs if sent by facsimile or email.

If to State:	If to Contractor:
[Name]	[Name]
[Street Address]	[Street Address]
[City, State, Zip]	[City, State, Zip]
[Email]	[Email]
[Phone]	[Phone]

4. Insurance. Contractor must maintain the minimum insurances identified in the Insurance Schedule attached as **Schedule C**.

5. Terms of Use of the Software. [Bidder please select the appropriate license type(s) for the Solution.]

5.1 [If the Contractor is providing the State with a license to use its Software indefinitely, then] Perpetual License. If Contractor is providing the State with a license to use its Software indefinitely, then Contractor hereby grants to the State and its Authorized Users a non-exclusive, royalty-free, perpetual, irrevocable, right and license to use the Software and Documentation in accordance with the terms and conditions of this Contract, provided that:

- (a) The State is prohibited from reverse engineering or decompiling the Software, making derivative works, modifying, adapting or copying the Software except as is expressly permitted by this Contract or required to be permitted by law;
- (b) The State is authorized to make copies of the Software for backup, disaster recovery, and archival purposes;
- (c) The State is authorized to make copies of the Software to establish a test environment to conduct Acceptance Testing;
- (d) Title to and ownership of the Software shall at all times remain with Contractor and/or its licensors, as applicable; and
- (e) Except as expressly agreed in writing, the State is not permitted to sub-license the use of the Software or any accompanying Documentation.

5.1 [alternate] [If Contractor is providing the State a license limited to only the term of the contract.] Term License. Contractor hereby grants to the State and its Authorized Users a non-exclusive, royalty-free, irrevocable, right and license during the Term to use and reproduce the Software and Documentation in accordance with the terms and conditions of this Contract, provided that:

- (a) The State is prohibited from reverse engineering or decompiling the Software, making derivative works, modifying, adapting or copying the Software except as is expressly permitted by this Contract or required to be permitted by law;
- (b) The State is authorized to make copies of the Software for backup, disaster recovery, and archival purposes;
- (c) The State is authorized to make copies of the Software to establish a test environment to conduct Acceptance Testing; and
- (d) Except as expressly agreed in writing, the State is not permitted to sub-license the use of the Software or any accompanying Documentation.

5.1 [alternate] [If the Software is offered as SaaS and Contractor is only providing the State access to use it Software during the Term of the Contract only, then] Subscription.

- (a) During the Term and such additional periods, if any, the State may:
 - (i) access and use the Software, including in operation with other software, hardware, systems, networks and services, for the State's governmental purposes, including for Processing State Data;
 - (ii) generate, print, copy, upload, download, store and otherwise Process all GUI, audio, visual, digital and other output, displays and other content as may result from any access to or use of the Software;
 - (iii) prepare, reproduce, print, download and use a reasonable number of copies of the Specifications and Documentation for any use of the Software under this Contract; and
 - (iv) access and use the Software for all such non-production uses and applications as may be necessary or useful for the effective use of the Software hereunder, including for purposes of analysis, development, configuration, integration, testing, training, maintenance, support and repair, which access and use will be without charge and not included for any purpose in any calculation of the State's or its Authorized Users' use of the Software, including for purposes of assessing any Fees or other consideration payable to Contractor or determining any excess use of the Software as described in **Subsection 5.4** below.

5.2 Restrictions. The State will not: (a) rent, lease, lend, sell, sublicense, assign, distribute, publish, transfer or otherwise make the Software available to any third party, except as expressly permitted by this Contract or in any Statement of Work; or (b) use or authorize the use of the

Software or Documentation in any manner or for any purpose that is unlawful under applicable Law.

5.3 Fees. The State will pay Contractor the corresponding Fees set forth in a Statement of Work or Pricing Schedule for all Authorized Users access and use of the Software. Such Fees will be Contractor's sole and exclusive remedy for use of the Software, including any excess use.

5.4 Certification. To the extent that a License granted to the State is not unlimited, Contractor may request written certification from the State regarding use of the Software for the sole purpose of verifying compliance with this **Section**. Such written certification may occur no more than once in any 24 month period during the Term of the Contract. The State will respond to any such request within 45 calendar days of receipt. If the State's use is greater than contracted, Contractor may invoice the State for any unlicensed use (and related support) pursuant to the terms of this Contract at the rates set forth in **Schedule B**, and the unpaid license and support fees shall be payable in accordance with the terms of the Contract. Payment under this provision shall be Contractor's sole and exclusive remedy to cure these issues.

5.5 State License Grant to Contractor. The State hereby grants to Contractor a limited, non-exclusive, non-transferable license (i) to use the State's (or individual agency's, department's or division's) name, trademarks, service marks or logos, solely in accordance with the State's specifications, and (ii) to display, reproduce, distribute and transmit in digital form the State's (or individual agency's, department's or division's) name, trademarks, service marks or logos in connection with promotion of the Services as communicated to Contractor by the State. Use of the State's (or individual agency's, department's or division's) name, trademarks, service marks or logos will be specified in the applicable Statement of Work. Contractor is provided a limited license to State Materials for the sole and exclusive purpose of providing the Services.

6. Third-Party Components. At least 30 days prior to adding new third-party components, Contractor will provide the State with notification information identifying and describing the addition. Throughout the Term, on an annual basis, Contractor will provide updated information identifying and describing any third-party components included in the Software. Contractor is responsible for ensuring that all Third-Party Components are properly licensed for the State's use.

7. Intellectual Property Rights

7.1 Ownership Rights in Software

(a) For purposes of this **Section 7** only, the term "Software" does not include Customizations.

(b) Subject to the rights and licenses granted by Contractor in this Contract and the provisions of **Subsection 7.1(c)**:

- (i) Contractor reserves and retains its entire right, title and interest in and to all Intellectual Property Rights arising out of or relating to the Software; and
- (ii) none of the State or Authorized Users acquire any ownership of Intellectual Property Rights in or to the Software or Documentation as a result of this Contract.

(c) As between the State, on the one hand, and Contractor, on the other hand, the State has, reserves and retains, sole and exclusive ownership of all right, title and interest in and to State Materials, User Data, including all Intellectual Property Rights arising therefrom or relating thereto.

7.2 The State is and will be the sole and exclusive owner of all right, title, and interest in and to all Work Product developed exclusively for the State under this Contract, including all Intellectual Property Rights. In furtherance of the foregoing:

(a) Contractor will create all Work Product as work made for hire as defined in Section 101 of the Copyright Act of 1976; and

(b) to the extent any Work Product, or Intellectual Property Rights do not qualify as, or otherwise fails to be, work made for hire, Contractor hereby:

- (i) assigns, transfers, and otherwise conveys to the State, irrevocably and in perpetuity, throughout the universe, all right, title, and interest in and to such Work Product, including all Intellectual Property Rights; and

(ii) irrevocably waives any and all claims Contractor may now or hereafter have in any jurisdiction to so-called "moral rights" or rights of *droit moral* with respect to the Work Product.

8. Software Implementation.

8.1 Implementation. Contractor will as applicable; deliver, install, configure, integrate, and otherwise provide and make fully operational the Software on or prior to the applicable Milestone Date in accordance with the criteria set forth in a Statement of Work and the Implementation Plan.

8.2 Site Preparation. Unless otherwise set forth in a Statement of Work, Contractor is responsible for ensuring the relevant Operating Environment is set up and in working order to allow Contractor to deliver and install the Software on or prior to the applicable Milestone Date. Contractor will provide the State with such notice as is specified in a Statement of Work, prior to delivery of the Software to give the State sufficient time to prepare for Contractor's delivery and installation of the Software. If the State is responsible for Site preparation, Contractor will provide such assistance as the State requests to complete such preparation on a timely basis.

9. Software Acceptance Testing.

9.1 Acceptance Testing.

(a) Unless otherwise specified in a Statement of Work, upon installation of the Software, or in the case of Contractor Hosted Software, when Contractor notifies the State in writing that the Solution is ready for use, Acceptance Tests will be conducted as set forth in this **Section 9** to ensure the Software conforms to the requirements of this Contract, including the applicable Specifications and Documentation.

(b) All Acceptance Tests will take place at the designated Site(s) in the Operating Environment described in a Statement of Work, commence on the Business Day following installation of the Software, or the receipt by the State of the notification referenced in **Subsection 9.1(a)**, and be conducted diligently for up to 30 Business Days, or such other period as may be set forth in a Statement of Work (the "**Testing Period**"). Acceptance Tests will be conducted by the party responsible as set forth in a Statement of Work or, if a Statement of Work does not specify, the State, provided that:

- (i) for Acceptance Tests conducted by the State, if requested by the State, Contractor will make suitable Contractor Personnel available to observe or participate in such Acceptance Tests; and
- (ii) for Acceptance Tests conducted by Contractor, the State has the right to observe or participate in all or any part of such Acceptance Tests.

9.2 Contractor is solely responsible for all costs and expenses related to Contractor's performance of, participation in, and observation of Acceptance Testing.

(a) Upon delivery and installation of any application programming interfaces, Configuration or Customizations, or any other applicable Work Product, to the Software under a Statement of Work, additional Acceptance Tests will be performed on the modified Software as a whole to ensure full operability, integration, and compatibility among all elements of the Software ("**Integration Testing**"). Integration Testing is subject to all procedural and other terms and conditions set forth in this **Section**.

(b) The State may suspend Acceptance Tests and the corresponding Testing Period by written notice to Contractor if the State discovers a material Nonconformity in the tested Software or part or feature of the Software. In such event, Contractor will immediately, and in any case within 10 Business Days, correct such Nonconformity, whereupon the Acceptance Tests and Testing Period will resume for the balance of the Testing Period.

9.3 Notices of Completion, Non-Conformities, and Acceptance. Within 15 Business Days following the completion of any Acceptance Tests, including any Integration Testing, the party responsible for conducting the tests will prepare and provide to the other party written notice of the completion of the tests. Such notice must include a report describing in reasonable detail the tests conducted and the results of such tests, including any uncorrected Nonconformity in the tested Software.

(a) If such notice is provided by either party and identifies any Nonconformities, the parties' rights, remedies, and obligations will be as set forth in **Subsection 9.4** and **Subsection 9.5**.

(b) If such notice is provided by the State, is signed by the State Program Managers or their designees, and identifies no Nonconformities, such notice constitutes the State's Acceptance of such Software.

(c) If such notice is provided by Contractor and identifies no Non-Conformities, the State will have 30 Business Days to use the Software in the Operating Environment and determine, in the exercise of its sole discretion, whether it is satisfied that the Software contains no Nonconformities, on the completion of which the State will, as appropriate:

(i) notify Contractor in writing of Nonconformities the State has observed in the Software and of the State's non-acceptance thereof, whereupon the parties' rights, remedies and obligations will be as set forth in **Subsection 9.4** and **Subsection 9.5**; or

(ii) provide Contractor with a written notice of its Acceptance of such Software, which must be signed by the State Program Managers or their designees.

9.4 Failure of Acceptance Tests. If Acceptance Tests identify any Non-Conformities, Contractor, at Contractor's sole cost and expense, will remedy all such Nonconformities and re-deliver the Software, in accordance with the requirements set forth in the Contract. Redelivery will occur as promptly as commercially possible and, in any case, within 30 Business Days following, as applicable, Contractor's:

(a) completion of such Acceptance Tests, in the case of Acceptance Tests conducted by Contractor; or

(b) receipt of the State's notice under **Subsection 9. (a) or (c)(i)**, identifying any Nonconformities.

9.5 Repeated Failure of Acceptance Tests. If Acceptance Tests identify any Nonconformity in the Software after a second or subsequent delivery of the Software, or Contractor fails to re-deliver the Software on a timely basis, the State may, in its sole discretion, by written notice to Contractor:

(a) continue the process set forth in this **Section 9**;

(b) accept the Software as a nonconforming deliverable, in which case the Fees for such Software will be reduced equitably to reflect the value of the Software as received relative to the value of the Software had it conformed; or

(c) deem the failure to be a non-curable material breach of this Contract and a Statement of Work and terminate this Contract in accordance with **Section 16**.

9.6 Acceptance. Acceptance ("**Acceptance**") of the Software (subject, where applicable, to the State's right to Integration Testing) will occur on the date that is the earliest of the State's delivery of a notice accepting the Software under **Subsection 9.3(b)**, or **(c)(ii)**. Acceptance of the Software may be conditioned upon System Acceptance, if Contractor is providing Hardware, under the terms of this Contract.

10. Non-Software Acceptance.

10.1 If Contractor is providing Hardware under this Contract, Contractor will comply with the requirements for delivery, acceptance and warranty of Hardware as set forth in **Schedule H**.

10.2 System Acceptance. If Contractor is providing Hardware under this Contract, Contractor will comply with the requirements for acceptance testing of the Software and Hardware together as a System, as set forth in **Schedule I**.

10.3 All other non-Software Deliverables are subject to inspection and testing by the State within 30 calendar days of the State's receipt of them ("State Review Period"), unless otherwise provided in the Statement of Work. If the non-Software Deliverables are not fully accepted by the State, the State will notify Contractor by the end of the State Review Period that either: (a) the non-Software Deliverables are accepted but noted deficiencies must be corrected; or (b) the non-Software Deliverables are rejected. If the State finds material deficiencies, it may: (i) reject the non-Software Deliverables without performing any further inspections; (ii) demand performance at no additional cost; or (iii) terminate this Contract in accordance with **Section 16**.

10.4 Within 10 Business Days from the date of Contractor's receipt of notification of acceptance with deficiencies or rejection of any non-Software Deliverables, Contractor must cure, at no additional cost, the deficiency and deliver unequivocally acceptable non-Software Deliverables to the State. If acceptance with deficiencies or rejection of the non-Software Deliverables impacts the content or delivery of other non-completed non-Software Deliverables, the parties' respective Program Managers must determine an agreed to number of days for re-submission that minimizes the overall impact to the Contract. However, nothing herein affects, alters, or relieves Contractor of its obligations to correct deficiencies in accordance with the time response standards set forth in this Contract.

10.5 If Contractor is unable or refuses to correct the deficiency within the time response standards set forth in this Contract, the State may cancel the order in whole or in part. The State, or a third party identified by the State, may provide the non-Software Deliverables and recover the difference between the cost to cure and the Contract price plus an additional 10% administrative fee.

11. Assignment. Contractor may not assign this Contract or any of its rights or delegate any of its duties or obligations hereunder, voluntarily, or involuntarily, whether by merger (regardless of whether it is the surviving or disappearing entity), conversion, consolidation, dissolution, or operation of law to any other party without the prior written approval of the State. Upon notice to Contractor, the State, in its sole discretion, may assign in whole or in part, its rights or responsibilities under this Contract to any other governmental entity if such assignment is made reasonably necessary by operation of controlling law or regulation. If the State determines that a novation of the Contract to a third party is necessary, Contractor will agree to the novation and provide all necessary documentation and signatures.

12. Change of Control. Contractor will notify the State, within 30 calendar days of any public announcement or otherwise once legally permitted to do so, of a change in Contractor's organizational structure or ownership. For purposes of this Contract, a change in control means any of the following:

- (a) a sale of more than 50% of Contractor's stock;
- (b) a sale of substantially all of Contractor's assets;
- (c) a change in a majority of Contractor's board members;
- (d) consummation of a merger or consolidation of Contractor with any other entity;
- (e) a change in ownership through a transaction or series of transactions;
- (f) or the board (or the stockholders) approves a plan of complete liquidation.

A change of control does not include any consolidation or merger effected exclusively to change the domicile of Contractor, or any transaction or series of transactions principally for bona fide equity financing purposes. In the event of a change of control, Contractor must require the successor to assume this Contract and all of its obligations under this Contract.

13. Ordering, Invoices and Payment.

13.1 Authorizing Document. The document for the Contract will be a delivery order. No work should start until the delivery order is received by the Contractor.

13.2 Invoices must conform to the requirements communicated from time-to-time by the State. All undisputed amounts are payable within 45 days of the State's receipt. Contractor may only charge for the Solution provided as specified in Statement(s) of Work. Invoices must include an itemized statement of all charges.

13.3 The State has the right to withhold payment of any disputed amounts until the parties agree as to the validity of the disputed amount. The State will notify Contractor of any dispute within a reasonable time. Payment by the State will not constitute a waiver of any rights as to Contractor's continuing obligations, including claims for deficiencies or substandard Deliverables. Contractor's acceptance of final payment by the State constitutes a waiver of all claims by Contractor against the State for payment under this Contract, other than those claims previously filed in writing on a timely basis and still disputed.

13.4 The State will only disburse payments under this Contract through Electronic Funds Transfer (EFT). Contractor must register with the State at <http://www.michigan.gov/SIGMAVSS> to receive electronic fund transfer payments. If Contractor does not register, the State is not liable for failure to provide payment.

13.5 Right of Setoff. Without prejudice to any other right or remedy it may have, the State reserves the right to set off at any time any amount then due and owing to it by Contractor against any amount payable by the State to Contractor under this Contract.

13.6 Taxes. The State is exempt from federal excise tax, state, and local sales taxes, and use taxes if the Solution purchased under this Contract is for the State's exclusive use. Contractor will not include the collection of taxes for which the State is exempt in any invoices or payments related to this Contract. The State is not responsible for taxes imposed or assessed on Contractor.

13.7 Pricing/Fee Changes. Throughout the Term, all Pricing set forth in this Contract will be as set forth in **Schedule B – Pricing Schedule** and will not be increased, unless the State requires additional licenses, in which case the amount of fee per license the additional licenses will also remain fixed at the rates set forth in **Schedule B – Pricing Schedule**.

14. Liquidated Damages.

14.1 The parties understand and agree that any liquidated damages (which includes but is not limited to applicable credits) set forth in this Contract are reasonable estimates of the State's damages in accordance with applicable law.

14.2 The parties acknowledge and agree that Contractor could incur liquidated damages for more than one event.

14.3 The assessment of liquidated damages will not constitute a waiver or release of any other remedy the State may have under this Contract for Contractor's breach of this Contract, including without limitation, the State's right to terminate this Contract for cause and the State will be entitled in its discretion to recover actual damages caused by Contractor's failure to perform its obligations under this Contract. However, the State will reduce such actual damages by the amounts of liquidated damages received for the same events causing the actual damages.

14.4 Amounts due the State as liquidated damages may be set off against any Fees payable to Contractor under this Contract, or the State may bill Contractor as a separate item and Contractor will promptly make payments on such bills.

15. **Stop Work Order**. The State may suspend any or all activities under the Contract at any time. The State will provide Contractor a written stop work order detailing the suspension. Contractor must comply with the stop work order upon receipt. Within 90 calendar days, or any longer period agreed to by Contractor, the State will either:

- (a) issue a notice authorizing Contractor to resume work, or
- (b) terminate the Contract or delivery order. The State will not pay for activities that have been suspended, Contractor's lost profits, or any additional compensation during a stop work period.

16. **Termination, Expiration, Transition**. The State may terminate this Contract, the Support Services, or any Statement of Work, in accordance with the following:

16.1 Termination for Cause. In addition to any right of termination set forth elsewhere in this Contract:

- (a) The State may terminate this Contract for cause, in whole or in part, if Contractor, as determined by the State:
 - i) endangers the value, integrity, or security of State Systems, State Data, or the State's facilities or personnel;
 - (ii) becomes insolvent, petitions for bankruptcy court proceedings, or has an involuntary bankruptcy proceeding filed against it by any creditor; or
 - (iii) breaches any of its material duties or obligations under this Contract. Any reference to specific breaches being material breaches within this Contract will not be construed to mean that other breaches are not material.
- (b) If the State terminates this Contract under this **Subsection 16.1**, the State will issue a termination notice specifying whether Contractor must:
 - (i) cease performance immediately. Contractor must submit all invoices for Services accepted by the State within 30 days of the date of termination. Failure to submit an invoice within that timeframe will constitute a waiver by Contractor for any amounts due to Contractor for Services accepted by the State under this Contract, or

(ii) continue to perform for a specified period. If it is later determined that Contractor was not in breach of this Contract, the termination will be deemed to have been a termination for convenience, effective as of the same date, and the rights and obligations of the parties will be limited to those provided in

Subsection 16.2.

(c) The State will only pay for amounts due to Contractor for Services accepted by the State on or before the date of termination, subject to the State's right to set off any amounts owed by the Contractor for the State's reasonable costs in terminating this Contract. Contractor must promptly reimburse to the State any Fees prepaid by the State prorated to the date of such termination, including any prepaid Fees. Contractor must pay all reasonable costs incurred by the State in terminating this Contract for cause, including administrative costs, attorneys' fees, court costs, transition costs, and any costs the State incurs to procure the Services from other sources.

16.2 Termination for Convenience. The State may immediately terminate this Contract in whole or in part, without penalty and for any reason or no reason, including but not limited to, appropriation or budget shortfalls. The termination notice will specify whether Contractor must:

- (a) cease performance immediately. Contractor must submit all invoices for Services accepted by the State within 30 days of the date of termination. Failure to submit an invoice within that timeframe will constitute a waiver by Contractor for any amounts due to Contractor for Services accepted by the State under this Contract, or
- (b) continue to perform in accordance with **Subsection 16.3**. If the State terminates this Contract for convenience, the State will pay all reasonable costs, as determined by the State, for State approved Transition Responsibilities to the extent the funds are available.

16.3 Transition Responsibilities.

(a) Upon termination or expiration of this Contract for any reason, Contractor must, for a period of time specified by the State (not to exceed 180 calendar days; the "**Transition Period**"), provide all reasonable transition assistance requested by the State, to allow for the expired or terminated portion of the Contract to continue without interruption or adverse effect, and to facilitate the orderly transfer of the Services to the State or its designees. Such transition assistance may include but is not limited to:

- (i) continuing to perform the Services at the established Contract rates;
- (ii) taking all reasonable and necessary measures to transition performance of the work, including all applicable Services to the State or the State's designee;
- (iii) taking all necessary and appropriate steps, or such other action as the State may direct, to preserve, maintain, protect, and comply with **Section 22**, including without limitation, the return or destruction of State Data at the conclusion of the Transition Period; and
- (iv) preparing an accurate accounting from which the State and Contractor may reconcile all outstanding accounts (collectively, the "**Transition Responsibilities**"). The Term of this Contract is automatically extended through the end of the Transition Period.

(b) Contractor will follow the transition plan attached as **Schedule G** as it pertains to both transition in and transition out activities.

17. Indemnification

17.1 General Indemnification. Contractor must defend, indemnify and hold the State, its departments, divisions, agencies, offices, commissions, officers, and employees harmless, without limitation, from and against any and all actions, claims, losses, liabilities, damages, costs, attorney fees, and expenses (including those required to establish the right to indemnification), arising out of or relating to:

- (a) any breach by Contractor (or any of Contractor's employees, agents, subcontractors, or by anyone else for whose acts any of them may be liable) of any of the promises, agreements, representations, warranties, or insurance requirements contained in this Contract;
- (b) any infringement, misappropriation, or other violation of any Intellectual Property Right or other right of any third party;

(c) any bodily injury, death, or damage to real or tangible personal property occurring wholly or in part due to action or inaction by Contractor (or any of Contractor's employees, agents, subcontractors, or by anyone else for whose acts any of them may be liable); and

(d) any acts or omissions of Contractor (or any of Contractor's employees, agents, subcontractors, or by anyone else for whose acts any of them may be liable).

17.2 Indemnification Procedure. The State will notify Contractor in writing if indemnification is sought; however, failure to do so will not relieve Contractor, except to the extent that Contractor is materially prejudiced. Contractor must, to the satisfaction of the State, demonstrate its financial ability to carry out these obligations. The State is entitled to:

(a) regular updates on proceeding status;

(b) participate in the defense of the proceeding;

(c) employ its own counsel; and to

(d) retain control of the defense, at its own cost and expense, if the State deems necessary. Contractor will not, without the State's prior written consent (not to be unreasonably withheld), settle, compromise, or consent to the entry of any judgment in or otherwise seek to terminate any claim, action, or proceeding. Any litigation activity on behalf of the State or any of its subdivisions must be coordinated with the Department of Attorney General. An attorney designated to represent the State may not do so until approved by the Michigan Attorney General and appointed as a Special Assistant Attorney General.

17.3 The State is constitutionally prohibited from indemnifying Contractor or any third parties.

18. Infringement Remedies.

18.1 The remedies set forth in this Section are in addition to, and not in lieu of, all other remedies that may be available to the State under this Contract or otherwise, including the State's right to be indemnified for such actions.

18.2 If any Deliverable, or any component thereof, other than State Materials, is found to be infringing or if any use of any Software or any component thereof is enjoined, threatened to be enjoined or otherwise the subject of an infringement claim, Contractor must, at Contractor's sole cost and expense:

(a) procure for the State the right to continue to use such Deliverable, or component thereof to the full extent contemplated by this Contract; or

(b) modify or replace the materials that infringe or are alleged to infringe ("**Allegedly Infringing Materials**") to make the Deliverable and all of its components non-infringing while providing fully equivalent features and functionality.

18.3 If neither of the foregoing is possible notwithstanding Contractor's best efforts, then Contractor may direct the State to cease any use of any materials that have been enjoined or finally adjudicated as infringing, provided that Contractor will:

(a) refund to the State all amounts paid by the State in respect of such Allegedly Infringing Materials and any other aspects of the Deliverable provided under a Statement of Work for the Allegedly Infringing Materials that the State cannot reasonably use as intended under this Contract; and

(b) in any case, at its sole cost and expense, secure the right for the State to continue using the Allegedly Infringing Materials for a transition period of up to 6 months to allow the State to replace the affected features of the Deliverable without disruption.

18.4 If Contractor directs the State to cease using any Deliverable under **Subsection 18.3**, the State, at its sole discretion, will be entitled to declare such a direction from the Contractor to cease use a material breach of the Contract and may terminate this Contract under **Section 16**. Unless the claim arose against the Deliverable independently of any of the actions specified below, Contractor will have no liability for any claim of infringement arising solely from:

(a) Contractor's compliance with any designs, specifications, or instructions of the State; or

(b) modification of the Deliverable by the State without the prior knowledge and approval of Contractor.

19. Disclaimer of Damages and Limitation of Liability.

19.1 The State's Disclaimer of Damages. THE STATE WILL NOT BE LIABLE, REGARDLESS OF THE FORM OF ACTION, WHETHER IN CONTRACT, TORT, NEGLIGENCE, STRICT LIABILITY OR BY STATUTE OR OTHERWISE, FOR ANY CLAIM RELATED TO OR ARISING UNDER THIS CONTRACT FOR CONSEQUENTIAL, INCIDENTAL, INDIRECT, OR SPECIAL DAMAGES, INCLUDING WITHOUT LIMITATION LOST PROFITS AND LOST BUSINESS OPPORTUNITIES.

19.2 The State's Limitation of Liability. IN NO EVENT WILL THE STATE'S AGGREGATE LIABILITY TO CONTRACTOR UNDER THIS CONTRACT, REGARDLESS OF THE FORM OF ACTION, WHETHER IN CONTRACT, TORT, NEGLIGENCE, STRICT LIABILITY OR BY STATUTE OR OTHERWISE, FOR ANY CLAIM RELATED TO OR ARISING UNDER THIS CONTRACT, EXCEED THE MAXIMUM AMOUNT OF FEES PAYABLE UNDER THIS CONTRACT.

20. Disclosure of Litigation, or Other Proceeding. Contractor must notify the State within 14 calendar days of receiving notice of any litigation, investigation, arbitration, or other proceeding (collectively, "**Proceeding**") involving Contractor, a Permitted Subcontractor, or an officer or director of Contractor or Permitted Subcontractor, that arises during the term of the Contract, including:

- (a) a criminal Proceeding;
- (b) a parole or probation Proceeding;
- (c) a Proceeding under the Sarbanes-Oxley Act;
- (d) a civil Proceeding involving:
 - (i) a claim that might reasonably be expected to adversely affect Contractor's viability or financial stability; or
 - (ii) a governmental or public entity's claim or written allegation of fraud; or
- (e) a Proceeding involving any license that Contractor is required to possess in order to perform under this Contract.

21. State Data.

21.1 Ownership. The State's data ("**State Data**"), which will be treated by Contractor as Confidential Information, includes:

- (a) User Data;
- (b) Work Product;
- (c) all data made available to Contractor for or during the provision of the Solution, including but not limited to all text, sound, video, image files, or software; and
- (d) any other data collected, used, Processed, stored, or generated in connection with the Solution, including but not limited to:
 - (i) personally identifiable information ("**PII**") collected, used, Processed, stored, or generated as the result of the Solution, including, without limitation, any information that identifies an individual, such as an individual's social security number or other government-issued identification number, date of birth, address, telephone number, biometric data, mother's maiden name, email address, credit card information, or an individual's name in combination with any other of the elements here listed; and
 - (ii) protected health information ("**PHI**") collected, used, Processed, stored, or generated as the result of the Solution, which is defined under the Health Insurance Portability and Accountability Act ("**HIPAA**") and its related rules and regulations.

21.2 State Data is and will remain the sole and exclusive property of the State and all right, title, and interest in the same is reserved by the State.

21.3 Contractor Use of State Data. Contractor is provided a limited license to State Data for the sole and exclusive purpose of providing the Solution, including a license to collect, process, store, generate, and display State Data only to the extent necessary in the provision of the Solution. Contractor must:

- (a) keep and maintain State Data in strict confidence, using such degree of care as is appropriate and consistent with its obligations as further described in this Contract and applicable law to avoid unauthorized access, use, disclosure, or loss;

(b) use and disclose State Data solely and exclusively for the purpose of providing the Solution, such use and disclosure being in accordance with this Contract, any applicable Statement of Work, and applicable law;

(c) keep and maintain State Data in the United States or its territories. For the avoidance of doubt, Offshore Resources are not permitted under this Contract; and

(d) not use, sell, rent, transfer, mine, distribute, commercially exploit, or otherwise disclose or make available State Data for Contractor's own purposes or for the benefit of anyone other than the State without the State's prior written consent. Contractor's misuse of State Data may violate state or federal laws, including but not limited to MCL 752.795

21.4 Third-Party Requests. Contractor will immediately notify the State upon receipt of any third-party requests which in any way might reasonably require Access to State Data. Contractor will notify the State Program Managers or their designees by the fastest means available and also in writing. Contractor must provide such notification within twenty-four (24) hours from Contractor's receipt of the request. Contractor will not respond to subpoenas, service of process, FOIA requests, and other legal requests related to the State without first notifying the State. Upon request by the State, Contractor must provide to the State, its proposed response to the third-party request with adequate time for the State to review, and, as it deems necessary, to revise the response, object, or take other action.

21.5 Loss or Compromise of Data. In the event of any act, error or omission, negligence, misconduct, or breach on the part of Contractor that compromises or is suspected to compromise the security, confidentiality, integrity, or availability of State Data or the physical, technical, administrative, or organizational safeguards put in place by Contractor that relate to the protection of the security, confidentiality, or integrity of State Data, Contractor must, as applicable:

(a) notify the State as soon as practicable but no later than 24 hours of becoming aware of such occurrence;

(b) cooperate with the State in investigating the occurrence, including making available all relevant records, logs, files, data reporting, and other materials required to comply with applicable law or as otherwise required by the State;

(c) in the case of PII or PHI, at the State's sole election:

(i) with approval and assistance from the State, notify the affected individuals who comprise the PII or PHI as soon as practicable but no later than is required to comply with applicable law, or, in the absence of any legally required notification period, within 5 calendar days of the occurrence; or

(ii) reimburse the State for any costs in notifying the affected individuals;

(d) in the case of PII, provide third-party credit and identity monitoring services to each of the affected individuals who comprise the PII for the period required to comply with applicable law, or, in the absence of any legally required monitoring services, for no less than 24 months following the date of notification to such individuals;

(e) perform or take any other actions required to comply with applicable law as a result of the occurrence;

(f) pay for any costs associated with the occurrence, including but not limited to any costs incurred by the State in investigating and resolving the occurrence, including reasonable attorney's fees associated with such investigation and resolution;

(g) without limiting Contractor's obligations of indemnification as further described in this Contract, indemnify, defend, and hold harmless the State for any and all claims, including reasonable attorneys' fees, costs, and incidental expenses, which may be suffered by, accrued against, charged to, or recoverable from the State in connection with the occurrence;

(h) be responsible for recreating lost State Data in the manner and on the schedule set by the State without charge to the State; and

(i) provide to the State a detailed plan within 10 calendar days of the occurrence describing the measures Contractor will undertake to prevent a future occurrence. Notification to affected individuals, as described above, must comply with applicable law, be written in plain language, not be tangentially used for any solicitation purposes, and contain, at a minimum: name and contact information

of Contractor's representative; a description of the nature of the loss; a list of the types of data involved; the known or approximate date of the loss; how such loss may affect the affected individual; what steps Contractor has taken to protect the affected individual; what steps the affected individual can take to protect himself or herself; contact information for major credit card reporting agencies; and, information regarding the credit and identity monitoring services to be provided by Contractor. The State will have the option to review and approve any notification sent to affected individuals prior to its delivery. Notification to any other party, including but not limited to public media outlets, must be reviewed and approved by the State in writing prior to its dissemination.

21.6 The parties agree that any damages arising out of a breach of the terms set forth in this **Section** are to be considered direct damages and not consequential damages.

22. Non-Disclosure of Confidential Information. The parties acknowledge that each party may be exposed to or acquire communication or data of the other party that is confidential, privileged communication not intended to be disclosed to third parties.

22.1 Meaning of Confidential Information. For the purposes of this Contract, the term "**Confidential Information**" means all information and documentation of a party that: (a) has been marked "confidential" or with words of similar meaning, at the time of disclosure by such party; (b) if disclosed orally or not marked "confidential" or with words of similar meaning, was subsequently summarized in writing by the disclosing party and marked "confidential" or with words of similar meaning; and, (c) should reasonably be recognized as confidential information of the disclosing party. The term "Confidential Information" does not include any information or documentation that was: (a) subject to disclosure under the Michigan Freedom of Information Act (FOIA); (b) already in the possession of the receiving party without an obligation of confidentiality; (c) developed independently by the receiving party, as demonstrated by the receiving party, without violating the disclosing party's proprietary rights; (d) obtained from a source other than the disclosing party without an obligation of confidentiality; or, (e) publicly available when received, or thereafter became publicly available (other than through any unauthorized disclosure). For purposes of this Contract, in all cases and for all matters, State Data is deemed to be Confidential Information.

22.2 Obligation of Confidentiality. The parties agree to hold all Confidential Information in strict confidence and not to copy, reproduce, sell, transfer, or otherwise dispose of, give or disclose such Confidential Information to third parties other than employees, agents, or subcontractors of a party who have a need to know in connection with this Contract or to use such Confidential Information for any purposes whatsoever other than the performance of this Contract. The parties agree to advise and require their respective employees, agents, and subcontractors of their obligations to keep all Confidential Information confidential. Disclosure to the Contractor's subcontractor is permissible where:

- (a) the subcontractor is a Permitted Subcontractor;
- (b) the disclosure is necessary or otherwise naturally occurs in connection with work that is within the Permitted Subcontractor's responsibilities; and
- (c) Contractor obligates the Permitted Subcontractor in a written contract to maintain the State's Confidential Information in confidence. At the State's request, any of the Contractor's and Permitted Subcontractor's Representatives may be required to execute a separate agreement to be bound by the provisions of this **Subsection 22.2**.

22.3 Cooperation to Prevent Disclosure of Confidential Information. Each party must use its best efforts to assist the other party in identifying and preventing any unauthorized use or disclosure of any Confidential Information. Without limiting the foregoing, each party must advise the other party immediately in the event either party learns or has reason to believe that any person who has had access to Confidential Information has violated or intends to violate the terms of this Contract. Each party will cooperate with the other party in seeking injunctive or other equitable relief against any such person.

22.4 Remedies for Breach of Obligation of Confidentiality. Each party acknowledges that breach of its obligation of confidentiality may give rise to irreparable injury to the other party, which damage may be inadequately compensable in the form of monetary damages. Accordingly, a

party may seek and obtain injunctive relief against the breach or threatened breach of the foregoing undertakings, in addition to any other legal remedies which may be available, to include, in the case of the State, at the sole election of the State, the immediate termination, without liability to the State, of this Contract or any Statement of Work corresponding to the breach or threatened breach.

22.5 Surrender of Confidential Information. Upon termination or expiration of this Contract or a Statement of Work, in whole or in part, each party must, within 5 Business Days from the date of termination or expiration, return to the other party any and all Confidential Information received from the other party, or created or received by a party on behalf of the other party, which are in such party's possession, custody, or control. Upon confirmation from the State, of receipt of all data, Contractor must permanently sanitize or destroy the State's Confidential Information, including State Data, from all media including backups using National Security Agency ("NSA") and/or National Institute of Standards and Technology ("NIST") (NIST Guide for Media Sanitization 800-88) data sanitization methods or as otherwise instructed by the State. If the State determines that the return of any Confidential Information is not feasible or necessary, Contractor must destroy the Confidential Information as specified above. The Contractor must certify the destruction of Confidential Information (including State Data) in writing within 5 Business Days from the date of confirmation from the State.

23. Records Maintenance, Inspection, Examination, and Audit.

23.1 Right of Audit. Pursuant to MCL 18.1470, the State or its designee may audit Contractor to verify compliance with this Contract. Contractor must retain and provide to the State or its designee and the auditor general upon request, all financial and accounting records related to this Contract through the Term of this Contract and for 4 years after the latter of termination, expiration, or final payment under this Contract or any extension ("**Financial Audit Period**"). If an audit, litigation, or other action involving the records is initiated before the end of the Financial Audit Period, Contractor must retain the records until all issues are resolved.

23.2 Right of Inspection. Within 10 calendar days of providing notice, the State and its authorized representatives or designees have the right to enter and inspect Contractor's premises or any other places where Services are being performed, and examine, copy, and audit all records related to this Contract. Contractor must cooperate and provide reasonable assistance. If financial errors are revealed, the amount in error must be reflected as a credit or debit on subsequent invoices until the amount is paid or refunded. Any remaining balance at the end of this Contract must be paid or refunded within 45 calendar days.

23.3 Application. This **Section 23** applies to Contractor, any Affiliate, and any Permitted Subcontractor that performs Services in connection with this Contract.

24. Support Services. Contractor will provide the State with the Support Services described in the Service Level Agreement attached as **Schedule D** to this Contract. Such Support Services will be provided:

- (a) Free of charge during the Warranty Period.
- (b) Thereafter, for so long as the State elects to receive Support, in consideration of the State's payment of Fees for such services in accordance with the rates set forth in the Pricing Schedule.

25. Data Security Requirements. Throughout the Term and at all times in connection to the Solution, Contractor will maintain and enforce an information security program including safety and physical and technical security policies and procedures with respect to its Processing of the State's Confidential Information that comply with the requirements of the State's data security policies as set forth in **Schedule E** to this Contract.

26. Training. Contractor will provide, at no additional charge, training on the Solution provided hereunder in accordance with the times, locations and other terms set forth in a Statement of Work. Upon the State's request, Contractor will timely provide training for additional Authorized Users or other additional training on the Solution for which the State requests such training, at such reasonable times and locations and pursuant to such rates and other terms as are set forth in the Pricing Schedule.

27. Maintenance Releases; New Versions

27.1 Maintenance Releases. Provided that the State is current on its Fees, during the Term, Contractor will provide the State, at no additional charge, with all Maintenance Releases, each of which will constitute Software and be subject to the terms and conditions of this Contract.

27.2 New Versions. Provided that the State is current on its Fees, during the Term, Contractor will provide the State, at no additional charge, with all New Versions, each of which will constitute Software and be subject to the terms and conditions of this Contract.

27.3 Installation. The State has no obligation to install or use any Maintenance Release or New Versions. If the State wishes to install any Maintenance Release or New Version, the State will have the right to have such Maintenance Release or New Version installed, in the State's discretion, by Contractor or other authorized party as set forth in a Statement of Work. Contractor will provide the State, at no additional charge, adequate Documentation for installation of the Maintenance Release or New Version, which has been developed and tested by Contractor and Acceptance Tested by the State. The State's decision not to install or implement a Maintenance Release or New Version of the Software will not affect its right to receive Support Services throughout the Term of this Contract.

27.4 Supported Third-Party and Open-Source Components. Contractor will utilize only currently supported versions of all Third-Party or Open Source Components and will notify the State when not using the most recently published Third-Party and Open Source Components.

28. Source Code Escrow.

28.1 Escrow Contract. The parties may enter into a separate intellectual property escrow agreement. Such escrow agreement will govern all aspects of Source Code escrow and release. The cost of the escrow will be the sole responsibility of Contractor.

28.2 Deposit. Within 30 Business Days of the effective date of the escrow agreement, Contractor will deposit with the escrow agent, pursuant to the procedures of the escrow agreement, the Source Code for the Software, as well as the Documentation and names and contact information for each author or other creator of the Software. Promptly after release of any update, upgrade, patch, bug fix, enhancement, new version, or other revision to the Software, Contractor will deposit updated Source Code, documentation, names, and contact information with the escrow agent (all of which is collectively referred to herein as "**Deposit Material**").

28.3 Verification. At State's request and expense, the escrow agent may at any time verify the Deposit Material, including without limitation by compiling Source Code, comparing it to the Software, and reviewing the completeness and accuracy of all material. If the Deposit Material does not conform to the requirements of **Subsection 28.2** above:

- (a) Contractor will promptly deposit conforming Deposit Material; and
- (b) Contractor will pay the escrow agent for subsequent verification of the new Deposit Material. Any breach of the provisions of this **Section 28** will constitute material breach of this Contract, and no further payments will be due from the State until such breach is cured, in addition to any other remedies the State may have.

28.4 Deposit Material License. Contractor hereby grants the State a license to use, reproduce, and create derivative works from the Deposit Material, provided the State may not distribute or sublicense the Deposit Material or make any use of it whatsoever except for such internal or governmental uses as necessary to maintain and support the Software. Copies of the Deposit Material created or transferred pursuant to this Contract are licensed, not sold, and the State receives no title to or ownership of any copy or of the Deposit Material itself. The Deposit Material constitutes Confidential Information of Contractor pursuant to **Section 22** (Non-disclosure of Confidential Information) of this Contract (provided no provision of **Subsection 22.4** calling for return of Confidential Information before termination of this Contract will apply to the Deposit Material).

29. Contractor Representations and Warranties.

29.1 Authority. Contractor represents and warrants to the State that:

- (a) It is duly organized, validly existing, and in good standing as a corporation or other entity as represented under this Contract under the laws and regulations of its jurisdiction of incorporation, organization, or chartering;
- (b) It has the full right, power, and authority to enter into this Contract, and to perform its contractual obligations;

- (c) The execution of this Contract by its Representative has been duly authorized by all necessary organizational action; and
- (d) When executed and delivered by Contractor, this Contract will constitute the legal, valid, and binding obligation of Contractor, enforceable against Contractor in accordance with its terms.
- (e) Contractor is neither currently engaged in nor will engage in the boycott of a person based in or doing business with a strategic partner as described in 22 USC 8601 to 8606.

29.2 Bid Response. Contractor represents and warrants to the State that:

- (a) The prices proposed by Contractor were arrived at independently, without consultation, communication, or agreement with any other Bidder for the purpose of restricting competition; the prices quoted were not knowingly disclosed by Contractor to any other Bidder to the Solicitation; and no attempt was made by Contractor to induce any other Person to submit or not submit a proposal for the purpose of restricting competition;
- (b) All written information furnished to the State by or for Contractor in connection with this Contract, including Contractor's Bid Response, is true, accurate, and complete, and contains no untrue statement of material fact or omits any material fact necessary to make the information not misleading;
- (c) Contractor is not in material default or breach of any other contract or agreement that it may have with the State or any of its departments, commissions, boards, or agencies. Contractor further represents and warrants that it has not been a party to any contract with the State or any of its departments that was terminated by the State within the previous 5 years for the reason that Contractor failed to perform or otherwise breached an obligation of the contract; and
- (d) If any of the certifications, representations, or disclosures made in Contractor's Bid Response change after contract award, the Contractor is required to report those changes immediately to the Contract Administrator.

29.3 Software Representations and Warranties. Contractor further represents and warrants to the State that:

- (a) Contractor is the legal and beneficial owner of the entire right, title and interest in and to the Software, including all Intellectual Property Rights relating thereto or is the recipient of a valid license thereto, and that it has and will maintain the full power and authority to grant the Intellectual Property Rights to the Software or to use the Software in the Contract (i) without the further consent of any third party and (ii) without conditions or requirements not set forth in this Contract;
- (b) Contractor has, and throughout the Term and any additional periods during which Contractor does or is required to perform the Services will have, the unconditional and irrevocable right, power and authority, including all permits and licenses required, to provide the Services and grant and perform all rights and licenses granted or required to be granted by it under this Contract;
- (c) the Software, and the State's use thereof, is and throughout the license term will be free and clear of all encumbrances, liens and security interests of any kind;
- (d) neither its grant of the license, nor its performance under this Contract does or to its knowledge will at any time:
 - (i) conflict with or violate any applicable law;
 - (ii) require the consent, approval or authorization of any governmental or regulatory authority or other third party; or
 - (iii) require the provision of any payment or other consideration to any third party;
- (e) when used by the State or any Authorized User in accordance with this Contract the Solution as provided, delivered, or installed by Contractor does not or will not:
 - (i) infringe, misappropriate, or otherwise violate any Intellectual Property Right or other right of any third party; or
 - (ii) fail to comply with any applicable law;
- (f) as provided by Contractor, the Solution does not and will not at any time during the Term contain any:

- (i) Harmful Code; or
- (ii) Third party or Open Source Components or operate in such a way that it is developed or compiled with or linked to any third-party or Open Source Components, other than Approved Third-Party Components.
- (g) all Documentation is and will be complete and accurate in all material respects when provided to the State such that at no time during the license term will the Software have any material undocumented feature; and
- (h) Contractor will perform all Services in a timely, skillful, professional and workmanlike manner in accordance with commercially reasonable industry standards and practices for similar services, using personnel with the requisite skill, experience and qualifications, and will devote adequate resources to meet its obligations under this Contract.
 - (i) when used in the Operating Environment (or any successor thereto) in accordance with the Documentation, all Software as provided by Contractor, will be fully operable, meet all applicable specifications, and function in all respects, in conformity with this Contract and the Documentation;
 - (j) Contractor acknowledges that the State cannot indemnify any third parties, including but not limited to any third-party software providers that provide software that will be incorporated in or otherwise used in conjunction with the Services, and that notwithstanding anything to the contrary contained in any third-party software license agreement or end user license agreement, the State will not indemnify any third party software provider for any reason whatsoever;
- (k) no Maintenance Release or New Version, when properly installed in accordance with this Contract, will have a material adverse effect on the functionality or operability of the Software.
- (l) all Configurations or Customizations made during the Term will be forward-compatible with future Maintenance Releases or New Versions and be fully supported without additional costs.
- (m) If Contractor Hosted:
 - (i) Contractor will not advertise through the Solution (whether with adware, banners, buttons or other forms of online advertising) or link to external web sites that are not approved in writing by the State;
 - (ii) the Solution will in all material respects conform to and perform in accordance with the Specifications and all requirements of this Contract, including the Availability and Availability Requirement provisions set forth in the Service Level Agreement;
 - (iii) all Specifications are, and will be continually updated and maintained so that they continue to be, current, complete and accurate and so that they do and will continue to fully describe the Solution in all material respects such that at no time during the Term or any additional periods during which Contractor does or is required to perform the Services will the Solution have any material undocumented feature;
- (n) During the Term of this Contract, any audit rights contained in any third-party software license agreement or end user license agreement for third-party software incorporated in or otherwise used in conjunction with the Solution, will apply solely to Contractor or its Permitted Subcontractors. Regardless of anything to the contrary contained in any third-party software license agreement or end user license agreement, third-party software providers will have no audit rights whatsoever against State Systems or networks.

29.4 Work Product Representations and Warranties: Contractor further represents and warrants to the State that:

- (a) Contractor has all necessary rights, title, and/or licenses required to create, develop, or generate Work Product and to transfer all ownership rights in Work Product to the State as set forth in Section 7.
- (b) Contractor has verified that no third-party intellectual property has been incorporated into any Work Product created, developed, or generated by any nonhuman means used by Contractor.

29.5 Disclaimer. EXCEPT FOR THE EXPRESS WARRANTIES SET FORTH IN THIS CONTRACT, CONTRACTOR HEREBY DISCLAIMS ALL WARRANTIES, WHETHER EXPRESS, IMPLIED, STATUTORY, OR OTHERWISE, WITH RESPECT TO THIS CONTRACT.

30. Conflicts and Ethics. Contractor will uphold high ethical standards and is prohibited from: (a) holding or acquiring an interest that would conflict with this Contract; (b) doing anything that creates an appearance of impropriety with respect to the award or performance of the Contract; (c) attempting to influence or appearing to influence any State employee by the direct or indirect offer of anything of value including an offer of employment; or (d) paying or agreeing to pay any person, other than employees and consultants working for Contractor, any consideration contingent upon the award of the Contract. Contractor must immediately notify the State of any violation or potential violation of these standards. This Section applies to Contractor, any parent, affiliate, or subsidiary organization of Contractor, and any Permitted Subcontractor that provides the Solution in connection with this Contract.

31. Compliance with Laws. Contractor, its subcontractors, including Permitted Subcontractors, and their respective Representatives must comply with all laws in connection with this Contract.

32. Nondiscrimination. Under the Elliott-Larsen Civil Rights Act, 1976 PA 453, MCL 37.2101, *et seq.*, the Persons with Disabilities Civil Rights Act, 1976 PA 220, MCL 37.1101, *et seq.*, and Executive Directive 2019-09, Contractor and its subcontractors agree not to discriminate against an employee or applicant for employment with respect to hire, tenure, terms, conditions, or privileges of employment, or a matter directly or indirectly related to employment, because of race, color, religion, national origin, age, sex, height, weight, marital status, partisan considerations, any mental or physical disability, or genetic information that is unrelated to the person's ability to perform the duties of a particular job or position. Breach of this covenant is a material breach of the Contract.

33. Unfair Labor Practice. Under MCL 423.324, the State may void this Contract if the name of the Contractor, or the name of a subcontractor, manufacturer, or supplier of the Contractor, subsequently appears on the Unfair Labor Practice register compiled under MCL 423.322.

34. Governing Law. This Contract is governed, construed, and enforced in accordance with Michigan law, excluding choice-of-law principles, and all claims relating to or arising out of this Contract are governed by Michigan law, excluding choice-of-law principles. Any dispute arising from this Contract must be resolved in the Michigan Court of Claims. Contractor waives any objections, such as lack of personal jurisdiction or *forum non conveniens*. Contractor must appoint an agent in Michigan to receive service of process.

35. Non-Exclusivity. Nothing contained in this Contract is intended nor is to be construed as creating any requirements contract with Contractor, nor does it provide Contractor with a right of first refusal for any future work. This Contract does not restrict the State or its agencies from acquiring similar, equal, or like Services from other sources.

36. Force Majeure

36.1 Force Majeure Events. Neither party will be liable or responsible to the other party, or be deemed to have defaulted under or breached the Contract, for any failure or delay in fulfilling or performing any term hereof, when and to the extent such failure or delay is caused by: acts of God, flood, fire or explosion, war, terrorism, invasion, riot or other civil unrest, embargoes or blockades in effect on or after the date of the Contract, national or regional emergency, or any passage of law or governmental order, rule, regulation or direction, or any action taken by a governmental or public authority, including imposing an embargo, export or import restriction, quota or other restriction or prohibition (each of the foregoing, a "**Force Majeure Event**"), in each case provided that: (a) such event is outside the reasonable control of the affected party; (b) the affected party gives prompt written notice to the other party, stating the period of time the occurrence is expected to continue; (c) the affected party uses diligent efforts to end the failure or delay and minimize the effects of such Force Majeure Event.

36.2 State Performance; Termination. In the event of a Force Majeure Event affecting Contractor's performance under the Contract, the State may suspend its performance hereunder until such time as Contractor resumes performance. The State may terminate the Contract by written notice to Contractor if a Force Majeure Event affecting Contractor's performance hereunder continues substantially uninterrupted for a period of 5 Business Days or more. Unless the State terminates the Contract pursuant to the preceding sentence, any date specifically designated for Contractor's performance under the Contract will automatically be extended for a period up to the duration of the Force Majeure Event.

36.3 Exclusions; Non-suspended Obligations. Notwithstanding the foregoing or any other provisions of the Contract or this Schedule:

- (a) in no event will any of the following be considered a Force Majeure Event:
 - (i) shutdowns, disruptions or malfunctions of the Solution or any of Contractor's telecommunication or internet services other than as a result of general and widespread internet or telecommunications failures that are not limited to the Solution; or
 - (ii) the delay or failure of any Contractor Personnel to perform any obligation of Contractor hereunder unless such delay or failure to perform is itself by reason of a Force Majeure Event.
- (b) no Force Majeure Event modifies or excuses Contractor's obligations under **Section 21** (State Data), **22** (Non-Disclosure of Confidential Information), or **17** (Indemnification) of the Contract, Disaster Recovery and Backup requirements set forth in the Service Level Agreement, Availability Requirement (if Contractor Hosted) defined in the Service Level Agreement, or any data retention or security requirements under the Contract.

37. Dispute Resolution. The parties will endeavor to resolve any Contract dispute in accordance with this provision. The dispute will be referred to the parties' respective Contract Administrators or Program Managers. Such referral must include a description of the issues and all supporting documentation. The parties must submit the dispute to a senior executive if unable to resolve the dispute within 15 Business Days. The parties will continue performing while a dispute is being resolved, unless the dispute precludes performance. A dispute involving payment does not preclude performance. Litigation to resolve the dispute will not be instituted until after the dispute has been elevated to the parties' senior executive and either concludes that resolution is unlikely or fails to respond within 15 Business Days. The parties are not prohibited from instituting formal proceedings: (a) to avoid the expiration of statute of limitations period; (b) to preserve a superior position with respect to creditors; or (c) where a party decides that a temporary restraining order or other injunctive relief is the only adequate remedy. This Section does not limit the State's right to terminate the Contract.

38. Media Releases. News releases (including promotional literature and commercial advertisements) pertaining to this Contract or project to which it relates must not be made without the prior written approval of the State, and then only in accordance with the explicit written instructions of the State.

39. Severability. If any part of this Contract is held invalid or unenforceable, by any court of competent jurisdiction, that part will be deemed deleted from this Contract and the severed part will be replaced by agreed upon language that achieves the same or similar objectives. The remaining Contract will continue in full force and effect.

40. Waiver. Failure to enforce any provision of this Contract will not constitute a waiver.

41. Survival. Any right, obligation, or condition that, by its express terms or nature and context is intended to survive, will survive the termination or expiration of this Contract; such rights, obligations, or conditions include, but are not limited to, those related to transition responsibilities; indemnification; disclaimer of damages and limitations of liability; State Data; non-disclosure of Confidential Information; representations and warranties; insurance and bankruptcy.

42. Administrative Fee and Reporting.

Contractor must pay an administrative fee of 1% on all payments made to Contractor under the Contract including transactions with MiDEAL members, and other states (including governmental subdivisions and authorized entities). Administrative fee payments must be made online by check or credit card at:

<https://www.thepayplace.com/mi/dtmb/adminfee>

Contractor must submit an itemized purchasing activity report, which includes at a minimum, the name of the purchasing entity and the total dollar volume in sales. Reports should be mailed to

MiDeal@michigan.gov.

The administrative fee and purchasing activity report are due within 30 calendar days from the last day of each calendar quarter.

43. Extended Purchasing Program. This contract is extended to MiDEAL members. MiDEAL members include local units of government, school districts, universities, community colleges, and nonprofit hospitals. A current list of MiDEAL members is available at www.michigan.gov/mideal.

Upon written agreement between the State and Contractor, this contract may also be extended to: (a) other states (including governmental subdivisions and authorized entities) and (b) State of Michigan employees.

If extended, Contractor must supply all Contract Activities at the established Contract prices and terms. The State reserves the right to impose an administrative fee and negotiate additional discounts based on any increased volume generated by such extensions.

Contractor must submit invoices to, and receive payment from, extended purchasing program members on a direct and individual basis.

44. Contract Modification. This Contract may not be amended or modified in any way, except by a properly signed **Change Notice**. Notwithstanding the foregoing, no subsequent Statement of Work or Change Notice executed after the Effective Date will be construed to amend this Contract unless it specifically states its intent to do so and cites the section or sections amended.

45. Accessibility Requirements.

45.1 All Software provided by Contractor under this Contract, including associated content and documentation, must at all times conform to the Digital Accessibility Standards. Throughout the Term of the Contract, Contractor must:

- (a) maintain compliance with the Digital Accessibility Standards;
- (b) comply with plans and timelines approved by the State to achieve conformance in the event of any deficiencies;
- (c) ensure that no Maintenance Release, New Version, update or patch, when properly installed in accordance with this Contract, will have any adverse effect on the conformance of Contractor's Software to the Digital Accessibility Standards;
- (d) promptly respond to and resolve any complaint the State receives regarding accessibility of Contractor's Software;
- (e) upon the State's written request, provide evidence of compliance with this Section by delivering to the State Contractor's most current PAT for each product provided under the Contract; and
- (f) participate in the State of Michigan Digital Standards Review described below.

45.2 State of Michigan Digital Standards Review.

Throughout the Term, Contractor must assist the State, at no additional cost, with development, completion, and on-going maintenance of an accessibility plan, which requires Contractor, upon request from the State, to submit evidence to the State to review and validate Contractor's accessibility and compliance with the Digital Accessibility Standards. Prior to the Solution going-live a State of Michigan Digital Standards Review is required, and Contractor must remediate all accessibility issues identified in such review at no additional cost.

Additional State of Michigan Digital Standards Reviews may be required thereafter on an annual basis, or as otherwise required by the State. At no additional cost, Contractor must remediate all issues identified from any such review pursuant to plans and timelines that are approved in writing by the State.

45.3 Contractor must, without limiting Contractor's obligations of indemnification as further described in this Contract, indemnify, defend, and hold harmless the State for any and all claims, including reasonable attorneys' fees, costs, and incidental expenses, which may be suffered by, accrued against, charged to, or recoverable from the State arising out of its failure to comply with the foregoing accessibility standards.

45.4 Failure to comply with the requirements in this **Section 45** shall constitute a material breach of this Contract.

46. Further Assurances. Each party will, upon the reasonable request of the other party, execute such documents and perform such acts as may be necessary to give full effect to the terms of this Contract.

47. Relationship of the Parties. The relationship between the parties is that of independent contractors. Contractor, its employees, and agents will not be considered employees of the State. No partnership or joint venture relationship is created by virtue of this Contract. Contractor, and not the State, is responsible for the payment of wages, benefits and taxes of Contractor's employees and any subcontractors. Prior performance does not modify Contractor's status as an independent contractor. Neither party has authority to contract for nor bind the other party in any manner whatsoever.

48. Headings. The headings in this Contract are for reference only and do not affect the interpretation of this Contract.

49. No Third-party Beneficiaries. This Contract is for the sole benefit of the parties and their respective successors and permitted assigns. Nothing herein, express or implied, is intended to or will confer on any other person or entity any legal or equitable right, benefit or remedy of any nature whatsoever under or by reason of this Contract.

50. Equitable Relief. Each party to this Contract acknowledges and agrees that (a) a breach or threatened breach by such party of any of its obligations under this Contract may give rise to irreparable harm to the other party for which monetary damages would not be an adequate remedy and (b) in the event of a breach or a threatened breach by such party of any such obligations, the other party hereto is, in addition to any and all other rights and remedies that may be available to such party at law, at equity or otherwise in respect of such breach, entitled to seek equitable relief, including a temporary restraining order, an injunction, specific performance and any other relief that may be available from a court of competent jurisdiction, without any requirement to post a bond or other security, and without any requirement to prove actual damages or that monetary damages will not afford an adequate remedy, until or unless required by that court. Each party to this Contract agrees that such party will not oppose or otherwise challenge the appropriateness of equitable relief or the entry by a court of competent jurisdiction of an order granting equitable relief, in either case, consistent with the terms of this Section.

51. Effect of Contractor Bankruptcy. All rights and licenses granted by Contractor under this Contract are and will be deemed to be rights and licenses to "intellectual property," and all Deliverables are and will be deemed to be "embodiments" of "intellectual property," for purposes of, and as such terms are used in and interpreted under, Section 365(n) of the United States Bankruptcy Code (the "**Code**"). If Contractor or its estate becomes subject to any bankruptcy or similar proceeding, the State retains and has the right to fully exercise all rights, licenses, elections, and protections under this Contract, the Code and all other applicable bankruptcy, insolvency, and similar laws with respect to all Deliverables. Without limiting the generality of the foregoing, Contractor acknowledges and agrees that, if Contractor or its estate will become subject to any bankruptcy or similar proceeding:

(a) all rights and licenses granted to the State under this Contract will continue subject to the terms and conditions of this Contract, and will not be affected, even by Contractor's rejection of this Contract; and

(b) the State will be entitled to a complete duplicate of (or complete access to, as appropriate) all such intellectual property and embodiments of intellectual property comprising or relating to any Deliverables, and the same, if not already in the State's possession or in escrow, if applicable, will be promptly delivered to the State, unless Contractor elects to and does in fact continue to perform all of its obligations under this Contract.

52. Schedules. All Schedules that are referenced herein and attached hereto are hereby incorporated by reference. The following Schedules are attached hereto and incorporated herein:

Schedule A	Statement of Work
Schedule B	Pricing Schedule
Schedule C	Insurance Schedule
Schedule D	Service Level Agreement
Schedule E	Data Security Requirements
Schedule F	Disaster Recovery Plan
Schedule G	Transition Plan
Schedule J	Federal Provision Addendum

53. Counterparts. This Contract may be executed in counterparts, each of which will be deemed an original, but all of which together are deemed to be one and the same agreement and will become effective and binding upon the parties as of the Effective Date at such time as all the signatories hereto have signed a counterpart of this Contract. A signed copy of this Contract delivered by facsimile, e-mail or other means of electronic transmission (to which a signed copy is attached) is deemed to have the same legal effect as delivery of an original signed copy of this Contract.

54. Entire Agreement. These Terms and Conditions, including all Statements of Work and other Schedules and Exhibits (again collectively the "Contract") constitutes the sole and entire agreement of the

parties to this Contract with respect to the subject matter contained herein, and supersedes all prior and contemporaneous understandings and agreements, representations and warranties, both written and oral, with respect to such subject matter. In the event of any inconsistency between the statements made in the Terms and Conditions, the Schedules, Exhibits, and a Statement of Work, the following order of precedence governs: (a) first, these Terms and Conditions and (b) second, Schedule E – Data Security Requirements and (c) third, each Statement of Work; and (d) fourth, the remaining Exhibits and Schedules to this Contract. NO TERMS ON CONTRACTOR'S INVOICES, WEBSITE, BROWSE-WRAP, SHRINK-WRAP, CLICK-WRAP, CLICK-THROUGH OR OTHER NON-NEGOTIATED TERMS AND CONDITIONS PROVIDED WITH ANY OF THE SERVICES, OR DOCUMENTATION HEREUNDER, EVEN IF ATTACHED TO STATE'S DELIVERY OR PURCHASE ORDER, WILL CONSTITUTE A PART OR AMENDMENT OF THIS CONTRACT OR IS BINDING ON THE STATE OR ANY AUTHORIZED USER FOR ANY PURPOSE. ALL SUCH OTHER TERMS AND CONDITIONS HAVE NO FORCE AND EFFECT AND ARE DEEMED REJECTED BY THE STATE AND THE AUTHORIZED USER, EVEN IF ACCESS TO OR USE OF SUCH SERVICE OR DOCUMENTATION REQUIRES AFFIRMATIVE ACCEPTANCE OF SUCH TERMS AND CONDITIONS.

Schedule A – Statement of Work

BIDDER INSTRUCTIONS:

This schedule identifies the anticipated requirements of any Contract resulting from this Solicitation. The term "Contractor" in this document refers to a bidder responding to this Solicitation.

Bidder must respond to each requirement or question marked "BIDDER RESPONSE" below and explain how it will fulfill each requirement. Attach any supplemental information and appropriately reference within your response.

1. Definitions

The following terms have the meanings set forth below. All initial capitalized terms that are not defined in this Schedule shall have the respective meanings given to them in Section 1 of the Contract Terms and Conditions.

Term	Definition
Artificial Intelligence (AI)	Refers to systems that display intelligent behavior by analyzing their environment and taking actions – with some degree of autonomy – to achieve specific goals.
Cloud Services:	The capability must be a first-party offering. The capability is offered directly by the provider being evaluated. That means that it is marketed, sold, serviced, and supported by that provider, and is within the audit/compliance scope for that provider's offering. The capability must be cloud based. They are delivered to the State as a whole; they are not one-offs. They are software-defined; they must be capable of delivery of services without on-site hosted hardware appliances or virtual appliances that the State must configure. The capability will be fully in production and available to all customers. The capability will be generally available and cannot be restricted to certain customers. Managed services, delivered by provider or third-party personnel, are not Cloud Services. See SCHEDULE A – TABLE 1 - Business Specification Worksheet for more details, including more specific requirements for integration.

Direct Cloud Service Provider	The provider of network services, infrastructure, and/or business applications in the cloud. Specifically having the ability to provide all three service models of IaaS, PaaS, and SaaS services. While using a Public Cloud deployment model. The Provider must use a cloud computing model, which is a model for enabling ubiquitous, convenient, on-demand network access to a shared pool of configurable computing resources (e.g., networks, servers, storage, applications, and services) that can be rapidly provisioned and released with minimal management effort or service provider interaction. This cloud model is composed of five essential characteristics, three service models, and one deployment model. Essential Characteristics: On-demand self-service. The State can unilaterally provision and deprovision computing capabilities, such as server time and network storage, as needed automatically without requiring human interaction from any cloud service provider. Broad network access. Capabilities are available over the network and accessed through standard mechanisms that promote use by heterogeneous thin or thick client platforms (e.g., mobile phones, tablets, laptops, and workstations). Resource pooling. The provider's computing resources are pooled to serve multiple consumers using a multi-tenant model, with different physical and virtual resources dynamically assigned and reassigned according to consumer demand. There is a sense of location independence in that the customer generally has no control or knowledge over the exact location of the provided resources but must be able to specify location at a higher level of abstraction (e.g., country, state, or datacenter). Examples of resources include storage, processing, memory, and network bandwidth. Rapid elasticity. Capabilities can be elastically provisioned and released, in some cases automatically, to scale rapidly outward and inward commensurate with demand. To the consumer, the capabilities available for provisioning often appear to be unlimited and can be appropriated in any quantity at any time. Measured service. Cloud systems automatically control and optimize resource use by leveraging a metering capability at some level of abstraction appropriate to the type of service (e.g., storage, processing, bandwidth, and active user accounts). Resource usage can be monitored, controlled, and reported, providing transparency for both the provider and consumer of the utilized service. Deployment Model: Public cloud. The cloud infrastructure is provisioned for open use by the general public. It may be owned, managed, and operated by a business, academic, or government organization, or some combination of them. It exists on the premises of the cloud provider
Integrated IaaS / Infrastructure as a Service (IaaS)	The capability provided to the consumer is to provision processing, storage, networks, and other fundamental computing resources where the consumer is able to deploy and run arbitrary software, which can include operating systems and applications. The consumer does not manage or control the underlying cloud infrastructure but has control over operating systems, storage, and deployed applications; and possibly limited control of select networking components (e.g., host

	firewalls). (See "SCHEDULE A – TABLE 1 - Business Specification Worksheet" for details of what each of these services entails.)
Marketplace	A cloud marketplace is an online storefront where customers can purchase software and services that easily integrate with or are built on the cloud provider's offerings. It also offers cloud-native applications that customers can purchase and manage on the platform. Third Party offerings will require a separate license agreement executed between the State and the Third Party provider.
Integrated PaaS / Platform as a Service	The capability provided to the consumer is to deploy onto the cloud infrastructure consumer-created or acquired applications created using programming languages, libraries, services, and tools supported by the provider. ³ The consumer does not manage or control the underlying cloud infrastructure including network, servers, operating systems, or storage, but has control over the deployed applications and possibly configuration settings for the application-hosting environment. (See "SCHEDULE A – TABLE 1 - Business Specification Worksheet" for details of what each of these services entails.)
Software as a Service (SaaS)	The capability provided to the consumer is to use the provider's applications running on a cloud infrastructure ¹ . The applications are accessible from various client devices through either a thin client interface, such as a web browser (e.g., web-based email), or a program interface. The consumer does not manage or control the underlying cloud infrastructure including network, servers, operating systems, storage, or even individual application capabilities, with the possible exception of limited user-specific application configuration settings. (See "SCHEDULE A – TABLE 1 - Business Specification Worksheet" for details of what each of these services entails.)

2. Background

The State of Michigan issued a solicitation for Statewide Integrated IaaS on 11/20/2020 RFP# 171 – 210000000312, and Contracts were established with Amazon Web Services and Google LLC in December of 2022. The State intends to refresh this program as well as expand the scope of the program to include offerings beyond IaaS and as described below. Existing and new Contractors may provide a response to be considered for Contract award under this program. If existing contractors choose not to reply to this solicitation, their Contracts will be limited to infrastructure only.

3. Purpose

The State is seeking to establish a contract that will allow the State to consume on-demand, scalable computing resource Cloud Services from one or more Direct Cloud Service Providers. In the effort to avoid multiple cloud service hosting contracts with varying terms, the State of Michigan's Department of Technology, Management and Budget (DTMB) desires to setup a program with universal terms for all native cloud service products. This will provide a level playing field to all vendors across the entire State of Michigan IT Public Cloud space.

DTMB hosts and supports most of its computer applications on its own servers. The State is looking for the ability to transition hosting to the cloud when appropriate. DTMB is creating a State Digital Service (SDS) with product ownership of digital, technology and Cloud Services for the State of Michigan. The State Digital Service will be responsible for Cloud Services provided to State agencies. Once contracts have been awarded, the State will select the best Cloud Service Provider through a second-tier process for each instance based on the following criteria:

- Feature
- Integrations

- Development knowledge and ease of use
- Service Level
- Risk Profile
- Cost

While not required, the State, at its sole discretion, may decide to "refresh" this program (in whole or in part) at any point to allow for new vendors, products/services, update pricing, etc. At any point and at its sole discretion, the State may limit the number of vendors.

Term of the Agreement: 5 Base Years with 5, 1-Year Options

4. RESERVED

5. ADA COMPLIANCE

The State is required to comply with the Americans with Disabilities Act of 1990 (ADA) and has adopted standards and procedures regarding accessibility requirements for websites and software applications. All websites, applications, software, and associated content and documentation provided by the Contractor as part of the Solution must comply with the Digital Accessibility Standards.

Bidder must provide a description of conformance with World Wide Web Consortium (W3C) Web Content Accessibility Guidelines (WCAG) 2.1 Level AA specifications by providing a completed PAT for the Solution. If the Solution is comprised of multiple products, a PAT must be provided for each product. In addition to PATs, Bidders may include a verification of conformance certified by an industry-recognized third-party. If the Bidder is including any third-party products in the Solution, Bidder must obtain and provide the third-party PATs as well.

Each PAT must state exactly how the product meets the specifications. All "Not Applicable" (N/A) responses must be fully explained. Contractor must address each standard individually and with specificity; and clarify whether conformance is achieved throughout the entire product (for example – user functionality, administrator functionality, and reporting), or only in limited areas. A description of the evaluation methods used to support WCAG 2.1 Level AA conformance claims, including, if applicable, any third-party testing, must be provided. For each product that does not fully conform to WCAG 2.1 Level AA, Bidder must provide detailed information regarding the plan to achieve conformance, including timelines. Bidder must provide details of how they will meet these requirements.

BIDDER RESPONSE:

Begin Oracle Confidential – Trade Secret Information

[Redacted content]

[Redacted content]

6. RESERVED

7. ACCESS CONTROL AND AUTHENTICATION

The Contractor's solution must implement identity federation with the State's IT Identity and Access Management (IAM) environment as described in the State of Michigan Administrative Guide [\(1340.00.020.08 Enterprise Identity and Access Management Services Standard \(michigan.gov\)\)](#). To support federation with the SOM MILogin solution, the Contractor's solution must support SAML, OpenID or OAuth federated identity protocols. Solutions running within the States internally managed IT environment may be suitable for integration with the State's Active Directory services as identified in the 1340.00.020.08 standard.

Bidder must explain how they will meet the requirements for Access Control and Authentication.
BIDDER RESPONSE:

[Redacted content]

8. REQUIRED FUNCTIONALITY RELATING TO DATA RETENTION, DISPOSAL, and RETRIEVAL

The State has legal obligations to retain, dispose, and retrieve State Data along with obligations to manage and secure State Data. To meet these obligations, the Solution must allow the State to:

- 1) retain all data for the entire length of the Contract.
- 2) delete its data or request the deletion of its data, even data that may be stored offline or in backups.
- 3) transfer its data back to the State or to a new vendor or new solution.
- 4) transfer its data to the Archives of Michigan as may be required by a retention and disposal schedule.
- 5) retrieve data, even data that may be stored offline or in backups.

Except as otherwise stated in the Contract, Contractor will not dispose of, delete, or destroy State Data without the prior written approval of the State.

Bidder must review and explain how the data retention, disposal, and retrieval requirements will be met by the solution and describe its data management capabilities (storage limitations, duration, etc.). If the Solution does not allow the State to perform these activities itself, the bidder must explain how it will support the State's compliance with these requirements.

BIDDER RESPONSE:

[REDACTED]

9. END USER AND IT OPERATING ENVIRONMENT

The SOM IT environment includes FedRAMP authorized major cloud providers and on-premises market leading virtualization environments, with supporting platforms that includes enterprise storage, monitoring, and management running in house and in cloud hosting provides.

Contractor must accommodate the latest browser versions (including mobile browsers) as well as some pre-existing browsers. To ensure that users are able to access online services, Contractor must ensure applications and websites display and function accurately in, at minimum, the two most recent major versions of the following browsers, without reliance on special plugins or extensions:

- Google Chrome
- Microsoft Edge
- Firefox
- Safari

Contractor must support the current and future State standard environment at no additional cost to the State.

Bidder must describe the optimal IT environment, supported browsers, and user interfaces.
 BIDDER RESPONSE:

[REDACTED]

Bidder must describe any State system access requirements that are necessary for the Bidder to perform its obligations on a timely basis, including but not limited to, physical or remote access to State networks, servers, or individual workstations.

BIDDER RESPONSE:

[REDACTED]

Bidder must describe if it can comply with the current environment and how it intends to comply with any future changes to the IT environment. And if not, describe what IT and end user operating environment its Solution supports.

BIDDER RESPONSE:

[REDACTED]

(b) (7)(C),
[REDACTED]
[REDACTED]

(b) (7)(D),
[REDACTED]
[REDACTED]

[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

Bidder must describe how it communicates changes to its software and architecture.
BIDDER RESPONSE:

Age Group	Percentage of Respondents
18-24	~45%
25-34	~55%
35-44	~65%
45-54	~75%
55-64	~40%
65-74	~60%
75-84	~35%
85+	~50%

[REDACTED]

Bidder must describe how customers collaborate with your organization in the decision-making process for upgrades, maintenance, and change control.

BIDDER RESPONSE:

10. SOFTWARE

Software requirements are identified in **Schedule A – Table 1 Business Specification Worksheet**. Contractor must provide a Software Bill of Materials (SBOM) containing details and supply chain relationships of various components used in the Solution. The SBOM will contain all open source and third-party components, libraries, and dependencies included with or used in connection with the Solution. This information must be provided to the State in a mutually agreed format on a quarterly basis and for new components at least 30 days prior to being added to the Solution.

Look and Feel Standards

All software items provided by the Contractor must adhere to the State of Michigan Application/Site standards which can be found at <https://www.michigan.gov/standards>.

Mobile Responsiveness

If the software will be used on a mobile device as define in Schedule A – Table 1, Business Specification Worksheet, the Software must utilize responsive design practices to ensure the application is accessible via a mobile device.

SOM IT Environment Access

Contractor must access State environments using one or more of the following methods:

- State provided VDI (Virtual Desktop Infrastructure) where compliant.
- State provided and managed workstation device.
- Contractor owned and managed workstation maintained to all State policies and standards.
- Contractor required interface with State Systems which must be maintained in compliance with State policies and standards as set forth in **Schedule E – Data Security Requirements**.
- Contractor will not access State environments or State Systems from locations outside the United States or the jurisdiction territories of the United States.

Bidder must provide a detailed description of the Solution to be provided under the resulting Contract including, but not limited to, a detailed description of the proposed Software (name, type, version, release number, licensing structure [Perpetual vs Subscription], etc.), its functionality including the information architecture and functional design of the system, such as functionality maps, architectural maps, training materials, visual aids including screen shots, actions performed by the system, and any behind the scenes processing, optional add-on modules and plugins. The level of detail provided will be such so that anyone is able to read it and understand how the software works. Additionally, clearly define the Bidder's services and the Solution's ability to be rapidly configured or scaled as the State's business or technical demands change.

BIDDER RESPONSE:

■ [REDACTED] ■ [REDACTED] ■ [REDACTED] ■ [REDACTED] ■ [REDACTED] ■ [REDACTED] ■ [REDACTED] ■ [REDACTED]
Bidder must identify any unique software requirements to full fill the terms of the Contract. BIDDER RESPONSE: [REDACTED]
Bidder must describe any State system access requirements that are necessary for the Bidder to perform its obligations on a timely basis, including but not limited to, physical or remote access to State networks, servers, or individual workstations. BIDDER RESPONSE: [REDACTED]
Bidder must describe any custom software required to support internal SOM systems. BIDDER RESPONSE: [REDACTED]
Bidder must identify any third-party components, including open source components included with or used in connection with the proposed Solution. BIDDER RESPONSE: [REDACTED]
Bidder must identify and describe the use of AI leveraging State Data to develop the solution BIDDER RESPONSE: [REDACTED] [REDACTED] [REDACTED] [REDACTED] [REDACTED] [REDACTED] [REDACTED]
Bidder must identify and describe any AI capable offerings to the State proposed under the response. BIDDER RESPONSE: [REDACTED] [REDACTED] [REDACTED]

Bidder must provide a list of all mobile devices that are compatible with the Solution.
BIDDER RESPONSE:

[REDACTED]

Bidder must provide list of features that can be performed via a mobile device.
BIDDER RESPONSE:

[REDACTED]

11. *RESERVED*

12. *RESERVED*

13. *RESERVED*

14. TRAINING SERVICES

The Contractor must provide administration and end-user training for implementation, go-live support, and operational handoff.

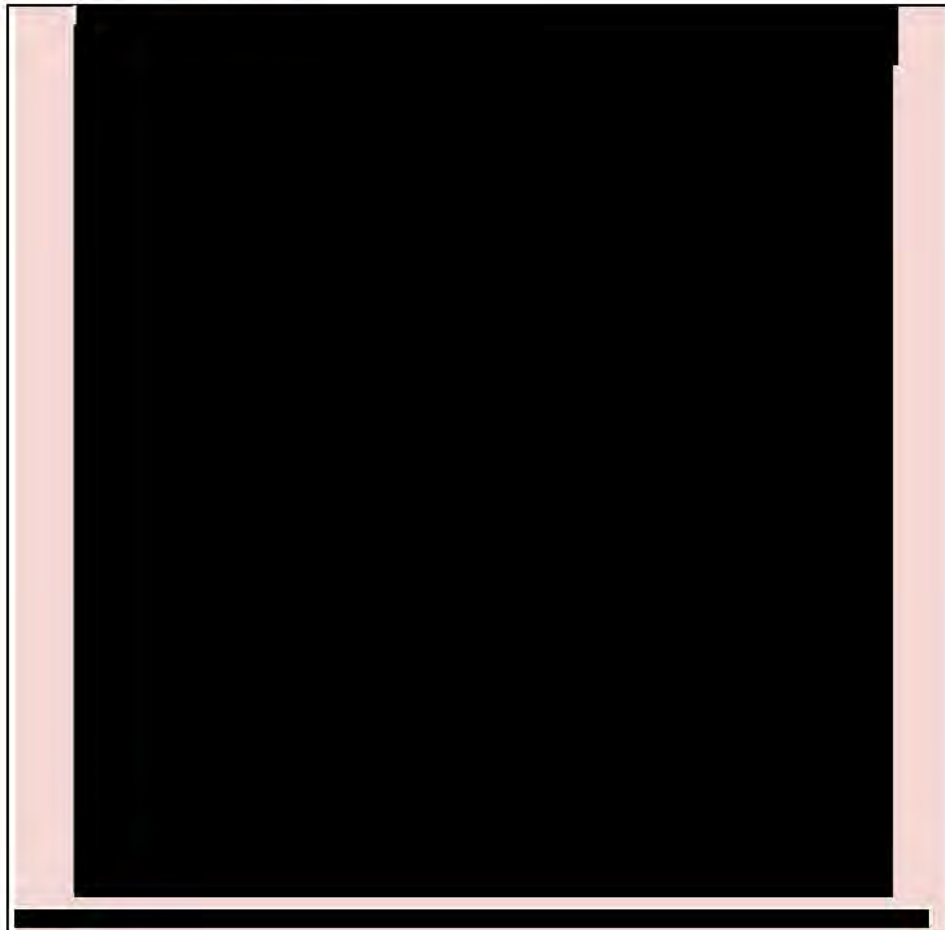
The Bidder must provide available training options and include details such as: typical class size, materials to be provided, class duration, on-site or web based. The Bidder must provide a training plan for go-live support and transition to self-support, including options and details such as the number of dedicated personnel, staff location, hours available and duration of go-live support.

BIDDER RESPONSE:

[REDACTED]

BIDDER RESPONSE:

[illegible]





15. TRANSITION RESPONSIBILITIES

Bidder must provide a detailed transition-in and transition-out plan in Schedule G – Transition In and Out Plan, including any roles or responsibilities expected of the State. The plan must demonstrate the steps to migrate between Bidder's Solution and third-party Solutions.

BIDDER RESPONSE:

[Redacted bidder response text]

16. DOCUMENTATION

Contractor must provide all user manuals, operating manuals, technical manuals and any other instructions, specifications, documents or materials, in any form or media, that describe the functionality, installation, testing, operation, use, maintenance, support, technical or other components, features or requirements of the Software.

Contractor must develop and submit for State approval complete, accurate, and timely Solution documentation to support all users, and will update any discrepancies, or errors through the life of the contract.

The Contractor's user documentation must provide detailed information about all software features and functionality, enabling the State to resolve common questions and issues prior to initiating formal support requests.

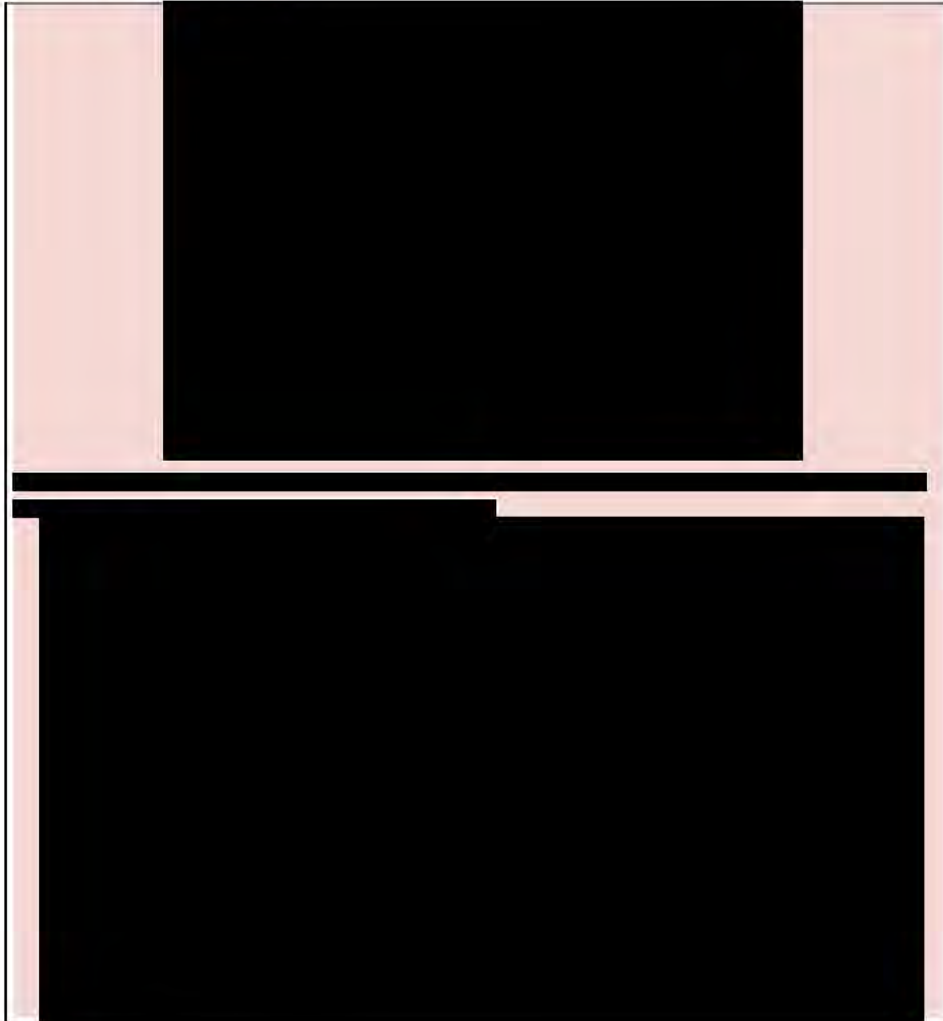
Bidder must provide details on, and examples of, documentation to meet the requirements set forth in this section.

BIDDER RESPONSE:

[REDACTED]

[REDACTED]

[REDACTED]



17. RESERVED

18. CONTRACTOR PERSONNEL

Contractor Contract Administrator. Contractor resource who is responsible to (a) administer the terms of this Contract, and (b) approve and execute any Change Notices under this Contract.

Contractor
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

19. CONTRACTOR NAMED PERSONNEL

Contractor Security Officer. Contractor resource who is responsible to respond to State inquiries regarding the security of the Contractor's Solution. This person must have sufficient knowledge of the security of the Contractor Solution and the authority to act on behalf of Contractor in matters pertaining thereto. Contractor must inform the State of any change to this resource.

Contractor
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

Contractor Program Manager. Contractor resource who is responsible to serve as the primary contact with regard to services who will have the authority to act on behalf of the Contractor in matters pertaining to receipt and processing of Support Requests and the Support Services.

Contractor
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

20. CONTRACTOR PERSONNEL REQUIREMENTS

Background Checks. Contractor must present certifications evidencing satisfactory ICHAT and drug test results for all staff identified for assignment to this project to the State of Michigan Program Manager designated for this Contract. In addition, proposed Contractor personnel will be required to complete a Michigan State Police background check and/or submit an RI-8 Fingerprint Card for the National Crime Information Center (NCIC), if required by project.

Annually, Contractor must perform an ICHAT for all staff identified for assignment to this project. Annual background check results will be reported to the State of Michigan Program Manager designated for this Contract.

Contractor, while employed with DTMB, will disclose to the State of Michigan Program Manager for this Contract, in writing at or before the beginning of the next scheduled duty shift:

- a. A felony or misdemeanor court conviction, whether by guilty plea, no contest plea or trial.
- b. A felony arraignment.

- c. Restriction, suspension, or loss of driving privileges for any reason, if the employee's current position requires possession of a valid driver's license.

Contractor will pay for all costs associated with ensuring its staff meet all requirements. Contractor must notify the State Program Manager(s) prior to removing or replacing any Contractor Personnel with access to State Data under this Contract. Contractor must also provide written certification to the State Program Manager(s) that Contractor Personnel's access to State Data has been terminated. Contractor must notify the State in advance of allocating Contractor Personnel to multiple State Contracts or Projects. Contractor must provide detail of how a given Contractor Personnel meets the resource experience requirements in advance of replacing a Contractor Personnel. Contractor must provide monthly summary of Contractor Personnel allocation for all Contractor Personnel who have access to State Data. Contractor must seek approval from the State prior to removing or replacing any Contractor Personnel with access to State Data.

Disclosure of Offshore Resources and Subcontractors.

Bidder must confirm that they will disclose all offshore resources and subcontractors and describe State Data Access of each. Please explain.

BIDDER RESPONSE:

21. STATE RESOURCES

The State will provide the following resources as part of the implementation and ongoing support of the Solution.

State Contract Administrator. The State Contract Administrator is the individual appointed by the State to (a) administer the terms of this Contract, and (b) approve and execute any Change Notices under this Contract.

State Contract Administrator
Name:
Address:
Phone:
Email:

Program Manager. The DTMB Program Manager (or designee) will approve all Deliverables and day to day activities.

DTMB Program Manager
Name:
Address:
Phone:
Email:

22. MEETINGS

At start of the engagement, the Contractor Project Manager must facilitate a project kick off meeting with the support from the State's Project Manager and the identified State resources to review the approach to accomplishing the project, schedule tasks and identify related timing, and identify any risks or issues related to the planned approach. Contractor will facilitate monthly meetings (or more or less frequently if determined necessary by the parties) to ensure ongoing support success.

Bidder must describe how they will meet the meeting requirements set forth above and note any exceptions for successful implementation and ongoing support of the Solution.
If Bidder has an alternative planned approach for project meetings provide details, including purpose, roles and responsibilities, and proposed frequency.
BIDDER RESPONSE:

[REDACTED]

23. PROJECT CONTROL & REPORTS Bidder must describe specific reports the Contractor will provide after contract execution and during the lifecycle of the contract, including all required scheduled reporting and details around the how and when metrics are captured/validated.

BIDDER RESPONSE:

[REDACTED]

End Oracle Confidential – Trade Secret Information

24. *RESERVED*

25. *RESERVED*

26. *ADDITIONAL INFORMATION*

The State reserves the right to purchase any additional services or products from the Contractor during the duration of the Contract.